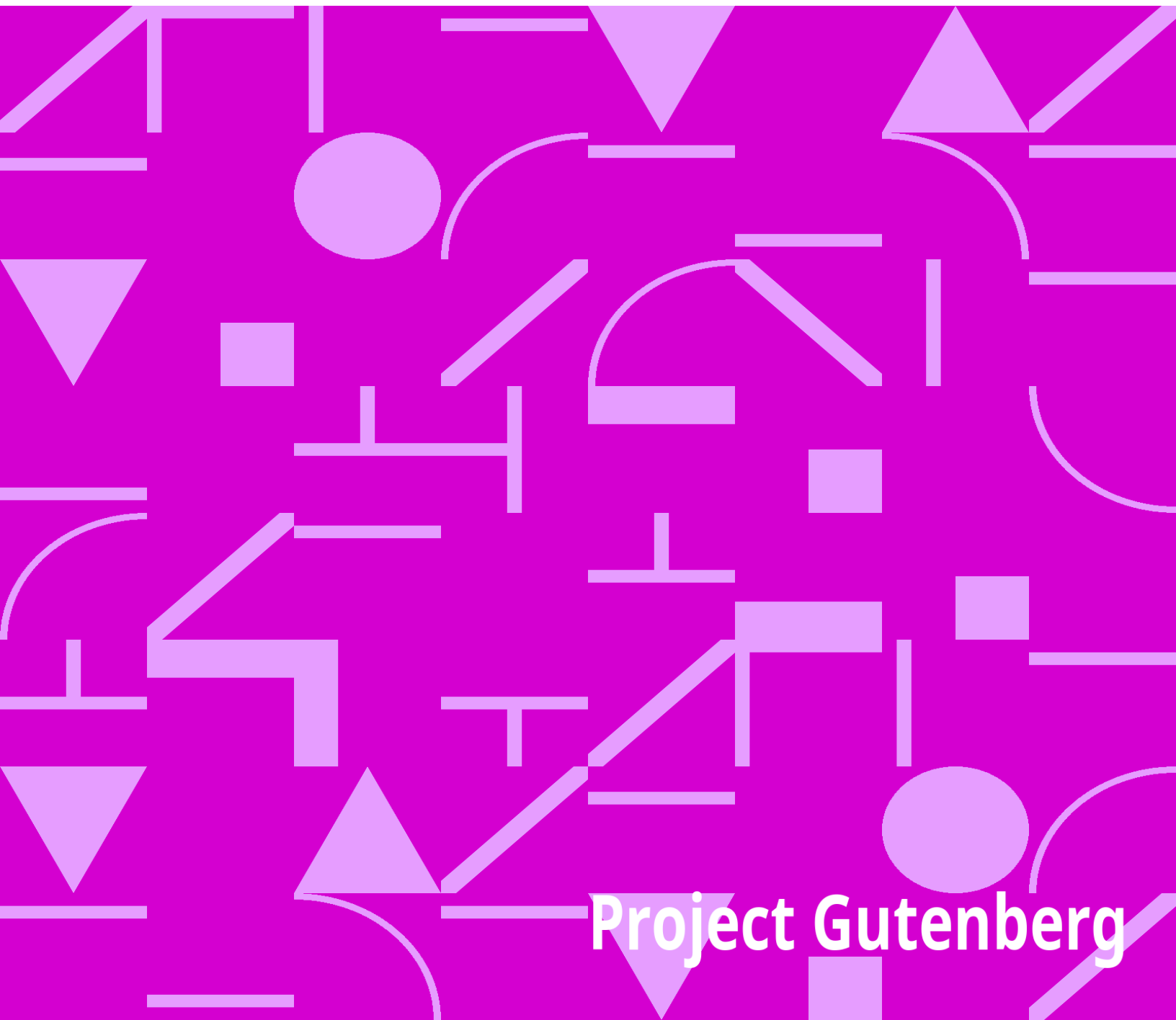


Notes and Queries, Number 138, June 19, 1852

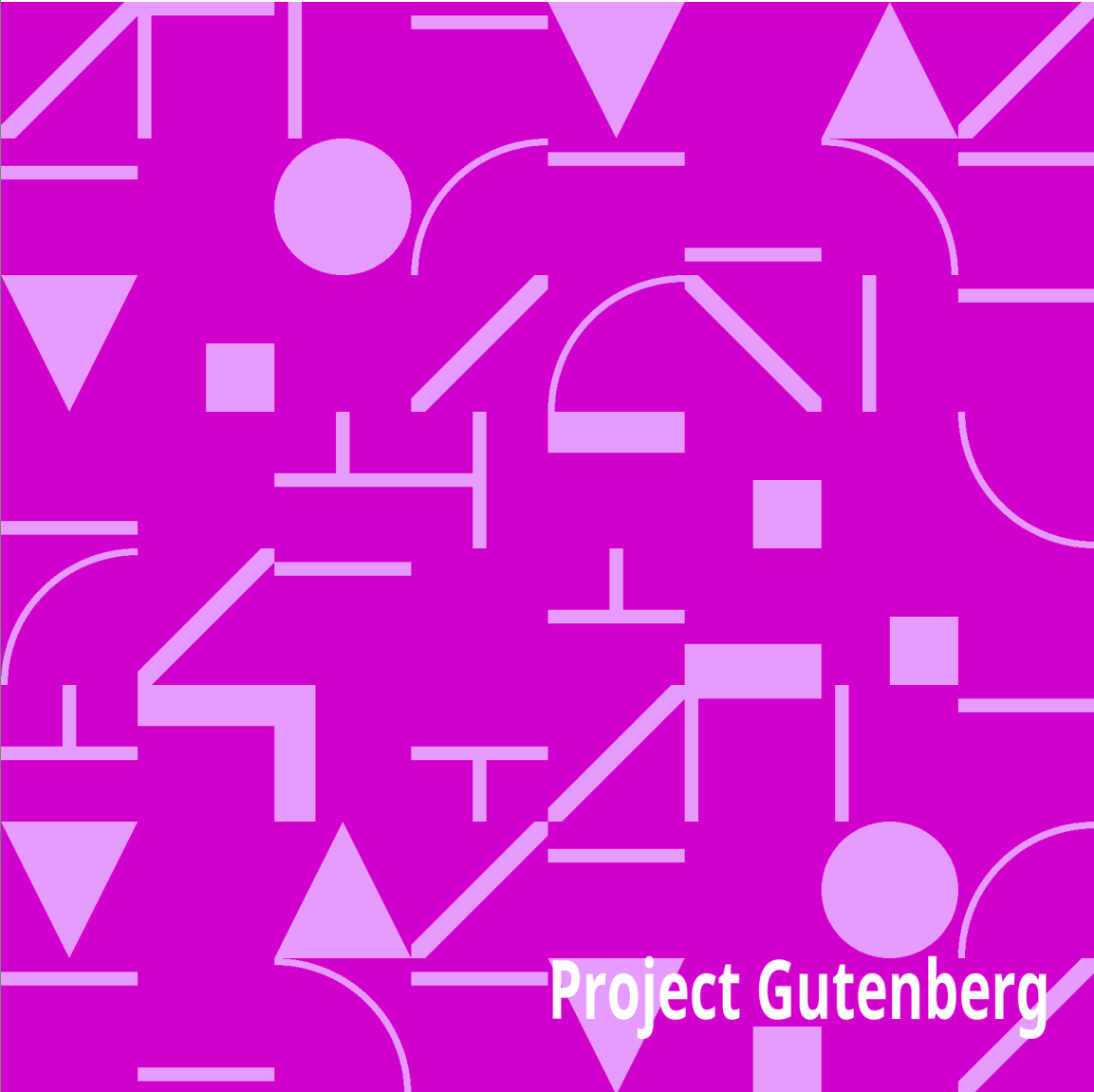
Various and George Bell

A decorative background pattern consisting of various geometric shapes in shades of purple and magenta, including triangles, circles, squares, and lines, arranged in a complex, overlapping design.

Project Gutenberg

**Notes and Queries, Number 138, June 19,
1852**

Various and George Bell

A decorative geometric pattern in shades of purple and magenta, featuring various shapes such as triangles, circles, squares, and lines, arranged in a complex, overlapping design.

Project Gutenberg

The Project Gutenberg eBook of Notes and Queries, Number 138, June 19, 1852

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Notes and Queries, Number 138, June 19, 1852

Author: Various

Editor: George Bell

Release date: May 24, 2013 [eBook #42779]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/42779

Credits: Produced by Charlene Taylor, Jonathan Ingram, Keith Edkins and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/Canadian Libraries)

*** START OF THE PROJECT GUTENBERG EBOOK NOTES AND
QUERIES, NUMBER 138, JUNE 19, 1852 ***

Transcriber's note: A few typographical errors have been corrected. They appear in the text like this, and the explanation will appear when the mouse pointer is moved over the marked passage.

NOTES AND QUERIES:

**A MEDIUM OF INTER-COMMUNICATION
FOR LITERARY MEN, ARTISTS,
ANTIQUARIES, GENEALOGISTS, ETC.**

"When found, make a note of."—CAPTAIN CUTTLE.

Vol. V.—No. 138.

Saturday, June 19. 1852.

**Price Fourpence.
Stamped Edition
5d.**

CONTENTS.

NOTES:—	Page
Defoe's Pamphlet on the Septennial Bill, by James Crossley	<u>577</u>
Arthur O'Connor	<u>579</u>
Inedited Poetry, by W. Sparrow Simpson	<u>580</u>
Folk Lore:—Lancashire May-day Custom—Hair cut off, an Antidote—Weather Prophecy—The Oak Tree and the Ash	<u>581</u>
The Diphthong "ai"	<u>581</u>
Minor Notes:—A Bit o' fine Writin'—Custom of Cranes in Storms—Aldress—How the ancient Irish used to crown their King—One of Junius's Correspondents identified	<u>581</u>
QUERIES:—	
Old Music	<u>582</u>
Treasury of St. Mark's; Record at Tiberius	<u>583</u>
Unicorn	<u>583</u>
Flanagan on the Round Towers of Ireland	<u>584</u>
Minor Queries:—St. Augustine's Six Treatises on Music—Bishop Merriman—The Escubierto—J. Scandret—Mary Horton—Biblicus on the Apocalypse—Cleopatra playing at Billiards—"Then comes the reckoning"—Giving the Sack—Scotch Provincial Tokens of the Seventeenth Century—Burial of Sir John Moore—Mexican, &c. Grammar—Foundation Stones—Mary Faun—Tonson and the Westminster	<u>584</u>
MINOR QUERIES ANSWERED:—Lady Farewell's Funeral Sermon—Sir E. K. Williams—Order of the Cockle—Waller Family—Life of St. Werburgh—	<u>585</u>

Blindman's Holiday—Ab. Seller—Martin-drunk—
Bagster's English Version

REPLIES:—

Reply to Mr. Hickson's Objections	587
The Term "Milesian," by John D'Alton	588
Ben. Jonson's adopted Sons, by C. H. Cooper	588
Shakspeare's Seal	589
Reason and Understanding according to Coleridge	590
General Wolfe	590
"The Miller's Melody," an old Ballad, by Dr. E. F. Rimbault	591
Surnames	592
Sir John Trenchard, by Sydney Walton	593
Papal Seal	593
Market Crosses	594
Replies to Minor Queries:—The two Gilberts de Clare—Baxter's Shove—Frebord—Devil—Mummy Wheat—Nacar—Mistletoe—The Number Seven—Gabriel Hounds—Burial—Marvell's Life and Works—The Death-Watch—The Rabbit as a Symbol, &c.	594

MISCELLANEOUS:—

Books and Odd Volumes wanted	599
Notices to Correspondents	599
Advertisements	599

Notes.

DEFOE'S PAMPHLET ON THE SEPTENNIAL BILL.

It is impossible to read Chalmers' and Wilson's *Lives of Defoe* without being constantly struck not merely by the want of all critical acumen and ordinary knowledge of the characteristics of Defoe's style which they display, but also by the absence of research on almost every point of importance connected with his career. Out of innumerable instances, I may mention his pamphlet on the subject of the Septennial Bill. Chalmers, and after him Wilson, are satisfied with repeating Boyer's statement that Defoe was the author of *The Triennial Bill Impartially Stated*, London, 1716; but neither of them appears to have referred to the pamphlet itself, and Wilson does not seem to have even consulted Boyer. He observes, "Mr. Chalmers thinks the pamphlet was not his." Whatever Chalmers might think, he does not certainly say so in express terms. The point itself is a curious one; and as it has not hitherto been gone into, perhaps I shall not trespass too much upon your space if I give your readers the results of my examination of it. In Boyer's *Political State for April*, 1716 (p. 484.), he enumerates in the following terms the pamphlets on the Septennial Bill:—

"*A Letter to a Country Gentleman, showing the Inconveniencies which attend the Last Act for Triennial Parliaments*, which, I am informed, was written by the learned Dr. Tyndal. This was followed with others intitled, *An Epistle to a Whig Member of Parliament; Some Considerations on a Law for Triennial Parliaments; The Suspension of the Triennial Bill, the Properest Means to unite the Nation; A First and Second Letter to a Friend in Suffolk; The Alterations in the Triennial Act Considered; The Innkeeper's Opinion of the Triennial Act*; and a few others. The only pamphlet that was published on the other side was called *The Triennial Act Impartially Stated*, &c. This pamphlet was judged, from its loose style and way of arguing, to be written by that prostituted fool of the last ministry, D—— D— F—; but whatever was offered either in print, or vivâ voce, against the Septennial Bill,

was fully answered and confuted by the following writing, generally fathered on the ingenious and judicious Joseph Addison, Esq."

Then follows (pp. 485-501.) a printer of a pamphlet, certainly an able one, entitled:

"Arguments about the Alteration of Triennial Elections of Parliament. In a Letter to a Friend in the Country."

In the following year, when Defoe had occasion to notice *The Minutes of the Negotiations of Mons. Mesnager*, 1717, 8vo., the well-known work which has been so frequently attributed to him, in a letter in the public prints, which letter seems entirely to have escaped all his biographers, and yet is of the most interesting description, he adverts to the above charge of being the author of *The Triennial Act Impartially Stated*, in the followings words:—

"About a year since, viz., when the debates were on foot for enlarging the time for the sitting of the present Parliament, commonly called repealing the Triennial Bill, a stranger, whom I never knew, wrote a warm pamphlet against it; and I, on the other hand, wrote another about a week before it. Mr. Boyer, with his usual assurance, takes notice of both these books in his monthly work, and bestows some praises, more than I think it deserved, upon one; but falls upon the other with great fury, naming, after much ill language, D. D. F. to be the author of it, which, he said, might be known by the inconsistency of the style, or to that effect. Now that the world may see what a judge this Frenchman is of the English style, and upon what slender ground he can slander an innocent man, I desire it may be noted, that it has been told him by his own friends, and I offer now to prove it to him by three unquestionable witnesses, *that the book which he praised so impertinently I was the author of, and that book which he let fly his dirt upon I had no concern in.*"

This declaration of Defoe, which claims to him the pamphlet fastened on the "ingenious and judicious Joseph Addison, Esq.," and repudiates that "judged to be written by that prostituted fool of the last ministry, D—— D

— F—," will amuse your readers, as it seems to form an admirable commentary on the text—

"And every blockhead knows me by my style."

We can fully accept his disclaimer of *The Triennial Act Impartially Stated*. It is, however, singular enough that the style of the *Arguments about the Alteration of Triennial Elections of Parliament*, without attaching too much importance to that criterion, is not the style of Defoe; and the Bill of Commerce with France is denounced in it in such terms as "that destructive bill," "that fatal bill," as one can scarcely suppose, without entertaining a meaner opinion of him than I feel assured he deserves, he could or would, under any circumstances, have made use of. To carry this Bill of Commerce he exerted all his great powers as a writer, and supported it in the *Review* and the *Mercator*, in the *Essay on the Treaty of Commerce with France* (1713, 8vo.), and in two other tracts, both of which were unknown to Chalmers and Wilson, and have never been noticed or included in the list of his works, namely, *Some Thoughts upon the Subject of Commerce with France: by the Author of the Review* (Baker, 1713, 8vo.), and *A general History of Trade, in which an Attempt is made to state and moderate the present Disputes about settling a Commerce between Great Britain and France for the Month of September* (Baker, 1713); being the fourth Number of the *History of Trade*, which Wilson says "extended only to two Numbers" (vol. iii. p. 339.). In the *Appeal to Honour and Justice*, published only the year before (1715), he supports the same cause with all his strength. He vindicates the part he had taken, and says—

"This was my opinion, and is so still; and I would venture to maintain it against any man upon a public stage, before a jury of fifty merchants, and venture my life upon the cause, if I were assured of fair play in the dispute."—*Works*, edit. 1841, vol. xx. p. 43.

His opinion on the policy of the bill, as appears by all his subsequent commercial works, never changed: and that he could so speak of it in this pamphlet (*Arguments about the Alteration, &c.*), supposing it to be his, seems almost incredible. I feel convinced that no other similar instance can be found, during the whole of his career, in which he can be shown to express himself with such a total disregard of his avowed opinions and his

honest convictions. Were it certain that he had done so, then the character which the Tolands, Oldmixons, and Boyers have given of him, as ready to take up any cause for hire, and as the prostituted agent of a party, and which I believe to be a base slander, would indeed be well deserved. But it will be asked how, after so apparently distinct and explicit an avowal, can it be doubted that he was the author of the pamphlet in question? I can only account for it on the supposition that Defoe, in writing from recollection of what Boyer had stated, in the following year, confounded the pamphlet praised with one of the pamphlets noticed. It appears to me that one of them, the full title of which is *Some Considerations on a Law for Triennial Parliaments, with an enquiry, 1. Whether there may not be a time when it is necessary to suspend the execution even of such Laws as are most essential to the Liberties of the People? 2. Whether this is such a time or no?* (London, printed for J. Baker and T. Warner, at the Black Boy, in Paternoster Row, 1716, pp. 40.), and which is noticed in Boyer's list, has infinitely more both of Defoe's style and manner of treating a subject than the other pamphlet. I entertain no doubt that it was written by him, though it has never hitherto been attributed to him; and it is far from being unlikely that his recollection may have deceived him and that he may have thought that Boyer's praise applied to this pamphlet, written on the same side, and not to the other. It will be observed that Defoe does not give the title of the pamphlet, and that he does not notice that it was attributed by Boyer to Addison; which he would scarcely have omitted doing if he had written his letter with Boyer's words before him, in which also the term "inconsistency" is not used. Such is my solution of the difficulty, which unexplained would throw a new, and certainly a very unfavourable light on Defoe's character as a pamphleteer and politician.

JAMES CROSSLEY.

ARTHUR O'CONNOR.

From the French recent papers we learn that Arthur O'Connor, one of the prominent actors in the Irish Rebellion of 1798, has just closed his prolonged life at his residence, the Château de Bignon, near Nemours (Seine et Marne) in France. When, in 1834, by permission of the government of Lord Grey, he and his accomplished wife were in this city

(Cork), with the view of disposing of his inherited and not confiscated property, in order to invest the produce in France, I was almost in daily intercourse with them; and, from my recollection of the lady's father, the Marquis de Condorcet, a distinguished mathematician, but better known as the biographer and ardent propagator of Voltaire's infidel principles, as well as the zealous partisan of the Revolution, though finally its victim, I was always a welcome visitor. O'Connor, whom Bonaparte had raised to the rank of General of Division, equivalent to that of General in full in our service, being next to the degree of Marshal, told me that the disunion and personal altercations of the Irish Legion engaged in the service of the then republican France had deservedly and utterly estranged and disgusted the French successive rulers, particularly Napoleon, in whose triumphs they consequently were not allowed to participate as a national body. The rancorous duel between two officers, McSweeney and Corbet, both from Cork, had made a deep impression on the great soldier, and the Legion was disbanded. Having inquired from O'Connor whether he did not intend to publish the events of his variegated life, he told me that he was preparing the narrative; but, on mentioning to his wife that he had made this acknowledgment, she immediately called on me with an earnest request that I would dissuade him from doing so. She did not explain her motive, and I only promised to avoid the future renewal of the subject in our conversations. As yet, whatever preparations he may have made, the press has not been resorted to; though, if in existence, as may be presumed, the work, or its materials, will not, most probably, be suffered to remain in closed and mysterious secrecy. The Memoirs, for so he entitled it, cannot fail to be most interesting; for he was a man of truth, and incapable of misrepresentation, though, of course, liable to misconception, in his recital of events; nor can it be denied, that a history, in any degree worthy of the theme—that is, of the Irish Rebellion, is still unpublished.^[1] Whatever objection may have prevented the publication during his life, none, I should suppose and hope, can now be urged after his death, which, singularly enough, in an article devoted to him in the *Biographie Universelle*, I find as having occurred so long since as 1830. His son, too, is there represented as the husband of his own mother! the writer, with other confusions of facts, having mistaken Arthur for his elder brother, Roger O'Connor, father of the present eccentric Feargus, M.P. It is thus, too, that the great vocalist Braham is in the same voluminous repository stated to have died of the cholera in

August, 1830, though, several years subsequently, I saw him in hale flesh and blood; but the compilation, valuable, it must be admitted, in French biography, teems with ludicrous blunders on English lives, which, in the new edition now in state of preparation, will, I hope, be corrected. Even the articles of Newton, though by Biot, and of Shakspeare and Byron by Villemain, are not much to their credit, particularly the latter, in which the national prejudices prominently emerge.

O'Connor, after having for sixteen years occupied apartments in the house of an eminent bookseller and printer, Monsieur Renouard, in the Rue de Tournan, leading to the Luxembourg, and the only street that I remember, now sixty years since, had a flagged footpath in that, at present, embellished metropolis, purchased his late residence, the Château de Bignon, with the proceeds of his paternal estates sold here, as previously stated, in 1834. The purchase was made from the heirs of Mirabeau, who was born in that mansion, and not in Provence, as generally supposed, because that southern province was the family's original seat. The great orator's father, distinguished, *per antiphrasim*, as "l'Ami des hommes," for he was the most unamiable of men, had acquired and removed to the castle so called, in order to approach the royal court of Versailles. The renowned son's bursts of eloquence still, I may say, resound in my ears, dazzling and entrancing my judgment, as Lord Chatham is reported similarly to have affected his hearers. Yet my old friend Vergniaux's genuine oratory and reasoning power struck me as far superior; and I can well believe that Chatham's son's were to those of his father, which his contemporary, Hume, no incompetent judge, and doubtless his hearer, by no means exalts, though the effects on his parliamentary audience appear to have been so extraordinary. "At present," writes Hume (Essay xiii.), "there are above half-a-dozen speakers in the two houses, who, in the judgment of the public, have reached very nearly the same pitch of eloquence, and no man pretends to give any one a preference over the next. This seems to me a certain proof that none of them have attained much beyond mediocrity in this art." Hume's *Essays* first appeared in 1742, when the elder Pitt was, indeed, young in parliament; but he survived till 1776, during which interval Chatham's fame reached its culminating point. Yet, in all the ensuing editions, the author never thought it necessary to modify his depreciation of British eloquence.

O'Connor, it is said, published his father-in-law Condorcet's *collective* works; but whether the edition of 1804 in 21 volumes is meant, I cannot determine, though I know no other; nor does this contain his mathematical writings. While outlawed in 1793 with the Girondist faction, he evaded, from October to March, 1794, the revolutionary search, when he poisoned himself, unwilling, he said, in some verses addressed to his wife, the sister of Marshal Grouchy, further to participate in the horrors of the period, though he had been most instrumental in preparing the way for them. He chose, however, the better side, in his conception, of the proposed alternative or dilemma:

"Ils m'ont dit: Choisis d'être oppresseur ou victime;
J'embrassai le malheur, et leur laissai le crime."

Madame O'Connor, a child of five years old at her father's death, had a very faint recollection of him; but I perfectly remember him, with his ardent look, and, while still young, a grey head,—"a volcano covered with snow," as was observed of him. O'Connor's only child, a mild gentlemanly young man, but certainly not the inheritor of his parent's talents, predeceased him, so that no descendant, either of Condorcet or O'Connor, now survives.

J. R. (of Cork).

Footnote 1:[\(return\)](#)

Indeed, the general history of the kingdom is still a sad desideratum, and, in the impassioned dissensions of the people, not likely to be adequately supplied.

INEDITED POETRY.

(Vol. v., pp. 387. 435.)

By way of concluding my notes upon the MS. volume of poetry, from which I have already transcribed two pieces (inserted at pages 387. 485. of your present volume), I now send you the short poem referred to in my first communication:

"February 15th, past two in the morning.
Going to bed very ill.

Oh, when shall I, from pain and sorrow free,
 Enjoy calm rest, and lasting peace with thee!
 When will my weary pilgrimage be o'er,
 When shall my soul from earth to heav'n soar,
 And, freed from flesh, the God of Gods adore. }
 Oh thou who only knowest what is best,
 Give me, oh give me, peace, content and rest!
 In life and death, oh be thou ever nigh,
 And my great weakness with thy strength supply.
 If on the bed of sickness I am laid,
 Then let me find that thou can'st give me aid.
 My drooping soul may thy blest Spirit chear,
 And dissipate disponding gloomy fear.
 May the bright angels watch around my bed,
 And keep my timorous soul from fear and dread.
 And should excess of agony or pain,
 Or fever's rage o'er reason longest gain;
 Even then protect me by thy mighty power,
 Oh save me, save me, in that dreadful hour!
 Make every thought such as thou mayst approve,
 And every word show I my Maker love.
 If void of reason I should think, or say,
 Ought that's improper, wash such stains away.
 Resign'd unto thy will let me submit,
 With joy to whatsoever thou think'st fit.
 In peace let me resign my latest breath,
 And, void of fear, meet the grim tyrant death.
 My parting soul let me to God entrust,
 And hope a Resurrection with the just."

The devotional feeling displayed in these lines, and the circumstances under which they were composed, will probably render them interesting to some of your readers. The other poems in the little volume relate chiefly to the death of her beloved husband. I should have sent one of these had I thought them suitable to your columns. Suffice it to say, that her grief for her bereavement seems only to have been equalled by her affectionate reminiscences of the piety and excellence of the departed bishop, and only

to have been assuaged by the "sure and certain hope" which filled her mind. The Queries which I would found upon the MS. are two in number:

1. What is the precise date of the author's death?
2. The meaning (if any) of the subscription to the piece printed at page 435.?

Permit me to notice a trifling error of the press, p. 387. col. 2. l. 21, for *then* read *them*; and to thank you for the space given to these three communications.

W. SPARROW SIMPSON, B.A.

P.S.—Since writing the above I have seen the observation of your correspondent C. B., p. 523.: I cannot think the meaning of the signature so evident as he implies. His reason for the use of the name Juba is evidently correct: I am indebted to him for the suggestion, and must confess that the coincidence had escaped me. With regard to the word Issham, had it been intended to signify that the former name was "assumed, or false," it would certainly have been written I-sham, as C. B. evidently feels. It is *possible* that this part of the signature may have no meaning: this I must leave for some other correspondent to determine.

FOLK LORE.

Lancashire May-day Custom.—On the 1st of May, the following custom is observed in some parts of Lancashire, though now very nearly obsolete.

Late on the preceding night, or early on that morning, small branches of trees are placed at the doors of houses in which reside any marriageable girls. They are emblematical of the character of the maidens, and have a well understood language of their own, which is rhythmical. Some speak flatteringly, others quite the reverse: the latter being used when the character of the person for whom it is intended is not quite "above suspicion."

A malicious rustic wag may sometimes put a branch of the latter description where it is not deserved, but I believe this is an exception.

I only remember a few of the various trees which are laid under contribution for this purpose. The following will illustrate what I am writing about. I must premise that *wicken* is the local name for mountain ash:

Wicken, sweet chicken.

Oak, for a joke.

Ash, trash.

Gorse in bloom—rhymes with at noon,

(I omit the epithet given here, as commonly, to an unchaste woman), and is used for a notorious delinquent.

A. B.

Liverpool.

Hair cut off, an Antidote.—A few days ago I observed my old servant thrusting something into the ear of one of my cows. Upon inquiry, I was informed that it was hair cut off the calf's tail, the said calf having been taken away from the cow on the previous morning: the butcher cut it off, for the above purpose, "to make her forget the calf." I half resolved on sending this account to "N. & Q.," but I hesitated, under the idea that it would perhaps hardly be worth the while. But this afternoon my eye caught the following scrap in a newspaper just published:

"At Oldham, last week, a woman summoned the owner of a dog that had bitten her. She said that she should not have adopted this course had the owner of the animal given her some of its hair, to ensure her against any evil consequences following the bite."

There is so much similarity in the two cases, that I now would ask whether your readers can throw any light on the subject?

BÆOTICUS.

Edgmond, Salop.

Weather Prophecy—The Oak Tree and the Ash (Vol. v., p. 534.).—When the oak comes out before the ash, there will be fine weather in harvest. I have remarked this for several years, and find it generally correct, as far as such things can be.

BOSQUECILLO VIEGO.

THE DIPHTHONG "AI."

Speaking of the diphthong *ai*, Walker, in the "Principles of English Pronunciation" prefixed to his *Dictionary*, says (Art. 202.):

"The sound of this diphthong is exactly like the long slender sound of *a*; thus, *pail* a vessel, and *pale* a colour, are perfectly the same sound."

This sound is analysed (Art. 225.) as follows:

"This triphthong (*aye*) is a combination of the slender sound of *a*, heard in *pa-per*; and the *e* in *metre*."

The sound, therefore, is a combination of *two simple* sounds. But in a previous article (8.) *a*, *e*, *o* are called *simple* vowels; or (according to his definition):

"Those which are formed by *one* conformation of the organs only; that is, the organs remain exactly in the *same* position at the *end* as at the *beginning* of the letter; whereas, in the *compound* vowels *i* and *u*, the organs *alter* their position before the letter is completely sounded."

Walker, therefore, makes the sound to be "*combination of two simple* sounds," although he had already declared it to be a *simple* sound. Now, strange to say, Dr. Richardson, in his very valuable contribution to our literature, viz. his 8vo. *Dictionary* (a veritable *Richardson*, very long ago foretold by Joe Miller), is guilty of the same inconsistency. In the "Grammatical and Etymological Examination adapted to the Dictionary," he reckons *thirteen simple* vowels in our language. The *tenth* is the "long slender sound of *a*," as Walker would call it; and the sound is given us (according to Richardson) in these words: "*Lame, Tame, Crane, Faint*, and

Layman." My Query is, ought not this sound to be transferred from the *simple vowels* under the *true diphthongs*? And ought we not to distinguish between the pronunciation of *pail* and *pale*, just as we do between *neigh*, and *né* (French); *bait* and *bête* (French); or between *pay* and *pe* (Welsh); *tay* and *te* (Welsh)? It is worthy of remark, that the Welsh language has only the *simple* sound, *not* the *diphthongal*?

R. PRICE.

Minor Notes.

A Bit o' fine Writin'.—In the Preface to certain *Lectures on Ecclesiastes*, recently published, there occurs a choice scientific illustration, the "intellectual vastitude" whereof "necessitates a certain catholicity" of acquirements possessed by few readers. The author is referring to Jerome, and says:

"The most painful thing in his writings is the tone of *litigious infelicity* by which they are pervaded. It is a sort of *formic acid* which flows from the *finger-points* not of our good father alone, but of a whole class of divines; and, like the red marks left by the feet of ants on litmus-paper, it discolours all his pages."

There are two vignettes in the work: one illustrates "Consider the lilies," concerning which the artist had the benefit of an eminent botanist's opinion, to ensure correctness in the design. The other represents Solomon in all his glory, *driving his own chariot*, holding the reins in his right hand, and a sceptre or "morning-star" in his left hand. Methinks this illustration would not have passed muster with Mr. Scharf or Dr. Braun.

AN UPLONDISHE MANNE.

Custom of Cranes in Storms.—Some of your readers may be able further to illustrate the customs which I mention:

"Ex avibus est præsagium cœli. When the crane taketh up a stone and flies with it in his *foot*, it is a sign of a storm."—Bishop Andrewes' *Orphan Lectures*, p. 92.: Lond. 1657, fol.

Nonnus describes cranes as carrying stones in their *mouths* to prevent them from being carried hither and thither by the violence of winds and storms.—*Dyonysiacks*, lib. xii. p. 689.: Antwerp, 1569.

Bishop J. Taylor mentions a similar custom in the case of geese, but there is a different reason assigned for it:

"Ælian tells of the geese flying over the mountain Taurus: ὥσπερ ἐμβαλόντες σφίσι στόμιον διαπέτονται; that for fear of eagles nature hath taught them to carry stones in their *mouths* till they be past their danger."—Sermon XXIII. *The Good and Evil Tongue*. Part II. ab init., p. 168.: Lond. 1678, fol.

RT.

Warmington.

Aldress.—This word signifies the wife of an alderman. It is found on a brass plate in the following epitaph, in the church of St. Stephen, Norwich, as given by Blomefield, *Hist. Norw.*, 1739, vol. ii. p. 595. Where else may it be met with? It is assuredly a better designation than that of "Mrs. Ald. A.," or "The Lady of Ald. B.;" and, from its occurrence in this place, seems to be a term once in use:

"Here ly buried Misstresse Maud Heade,
Sometyme an Aldress, but now am deade,
Anno MCCCCCLX and Seaven,
The XIII Day of April, then
My Lyf I leafte, as must all Men,
My Body yelding to Christen Dust,
My Soule to God the faithfull and Just."

COWGILL.

How the Ancient Irish used to crown their King.—

"A White cow was brought forth, which the king must kill, and seeth in water whole, and bathe himself therein stark naked; then, sitting, in the same cauldron, his people about him, he must eat the flesh and drink the broth wherein he sitteth, without cup or dish, or use of his hand."

Cited by Sir R. Peel in the debate on the Union with Ireland, April 25th, 1834. (*Mirror of Parliament*, p. 1311.)

One of Junius's Correspondents identified.—It has often appeared to me that a portion of the pages of "N. & Q." would be usefully employed in supplying information relative to works either anonymous, or by authors of

whom little is known. The French have one or two works expressly on this subject, but we have not any of the kind.

I have a volume now before me, concerning the author of which I now seek for information, as he was one of those who entered the lists with Junius, and addressed him under the signature of "An Advocate in the Cause of the People." One of his letters is reprinted in vol. i. p. 429. of (I am sorry to say) the unsatisfactory edition of the *Letters of Junius* recently published by Mr. Bohn; but the editor does not seem to have known the name of this "Advocate." This I learn from the work in question: *Hope's Curious and Comic Miscellaneous Works, started in his Walks*: London, printed for the Author, 8vo. without year or printer's name; but the Preface is dated April 24, 1780, and the Dedication is signed "John Hope," who had, he tells us, "once the honour of sitting" in the House of Commons; and he also informs us that Falkner wrote part of the poem *The Shipwreck* under his roof. Besides many amusing articles in prose and verse, the volume contains twenty-one papers entitled "The Leveller," which I believe originally appeared periodically in the *Westminster Mag.*; but I do not find them noticed by Drake in his Essays on that class of literature.

F. R. A.

Oak House.

[We entirely agree with our Correspondent on the subject of the first part of his Note; and can assure him there are no communications which we more earnestly desire than such as identify the authors of anonymous works, or furnish new information respecting writers of whom little is known.—ED.]

Queries.

OLD MUSIC.

I feel thankful to DR. RIMBAULT for the "Old Concert Bill" which you have printed in Vol. v., p. 556., and wish it may lead to more contributions towards what does not exist, but is much to be wished for, a history of *instrumental* music in this country. Having had this subject in my mind a good while, and having had occasion to observe how defective and erroneous the supposed sources of information are, I have from time to time made memoranda, which would be at the service of anybody who would undertake such a work as the correction of the *Dictionary of Musicians*, or the compilation of a more complete work. My notes indeed are not of much importance, but it is the kind of case in which every little helps. In this concert bill, for instance, relating to a first-rate performance, we have five names, Grano, Dieupart, Pippo, Vebar, and Baston, which are not in the Dictionary. As to the first, I only know him by a set of solos for a violin or flute, which I have; of the next three, I know nothing; and of the last, I did not know that he performed Woodcock's music, or indeed that he performed at all, though I knew him as a composer. And in a volume now lying before me, "XII Concertos" by Woodcock are followed by "Six Concertos in Six Parts for Violins and Flutes, viz.: a Fifth, Sixth, and Concert Flute: the proper Flute being nam'd to each Concerto; composed by Mr. John Baston," and printed for Walsh. He is not, however, named either as a composer or performer in the Dictionary. It may be said that these are obscure persons; but that is the very reason why some slight, plain notice of them should exist somewhere; for the history of an art is not well written, or well understood, if there is not some easy way of learning more or less about the obscure persons who are every now and then coming on the stage.

To this note, may I be allowed to add a couple of Queries which perhaps some musical reader may be able and willing to answer.

1. Who was "*Joseph Jackson, Batchelor in Music, late of St. John's College, Oxford;*" and did he compose anything beside six sonatas for two violins and a violoncello, which were "printed for the widow by Thompson and Son in St. Paul's Churchyard," I suppose (from some other "just published" music advertised on the title-page) about a century ago?

2. I have also—

"Six Trio pour deux Violons et Alto Viola ou Basse obligé. Composés par Mr. Bach; mis au jour par Mr. Huberty de l'Academie Royale de Musique, gravés par M^e son Epouse. Œuvre II."

Which Bach was the composer? I do not pretend to know by the style, being only—

AN AMATEUR.

TREASURY OF ST. MARK'S; RECORD AT TIBERIUS.

In Howell's *Familiar Letters*, edit. 1726, p. 62., he says that he saw in the Treasury of St. Mark's, Venice, a huge iron chest as tall as himself—

"that hath no lock, but a crevice through which they cast in the gold that's bequeathed to St. Mark in legacies, whereon is engraven this proud motto:

'Quando questo scrinio S'apria,
Tutto 'l Mundo tremera.'

'When this chest is opened, the whole world shall tremble.'

Is there any other account of this chest, or of its having been opened, as it was evidently reserved for some great necessity? Did not the exigencies of the state, during its decline, compel the Venetians to resort to it; if not, such a treasure could hardly escape the lynx-eyed rapacity of some one of the many spoilers to whom the unfortunate city has been subject. At p. 275. he gives an account of having read in *Suidas*, that in his time a record existed at Tiberius which was found in the Temple at Jerusalem when it was

destroyed, which affirms that our Saviour was in his lifetime upon earth chosen a priest of the Temple, and registered therein as "Jesus Christ, the Son of God and of the Virgin Mary." Howell requests the opinion of Dr. Usher, Lord Primate of Ireland, on the subject. Is there any corroborative evidence that such a register existed?

E. N. W.

Southwark.

UNICORN.

Can any of your correspondents refer me to an account of the supposed habits of this animal, which in these matter-of-fact days we must, I presume, be content to consider as fabulous? I am desirous to know from what source we derive the stories of the animosity between the lion and unicorn, and the curious way of catching the latter, which are referred to in Spenser's *Faerie Queen*, Act II. Sc. 5. 10.:

"Like as a lyon, whose imperiall powre,
A prowde rebellious unicorn defydes,
T'avoide the rash assault and wrathful stowre
Of his fiers foe, him a tree applyes,
And when him ronning in full course he spydes,
He slips aside; the whiles that furious beast
His precious horne, sought of his enemyes,
Strikes in the stocke, ne thence can be releast,
But to the mighty victor yields a bounteous feast."

Shakspeare also (*Julius Cæsar*, Act II. Sc. 1.) speaks of the supposed mode of entrapping them:

"For he loves to hear,
That unicorns may be betrayed with trees,
And bears with glasses, elephants with holes,
Lions with toils, and men with flatterers."

The ancients were most liberal with their descriptions of fabulous animals, and the Monoceros or Unicorn was a favourite subject with them; but I am not aware whether or no the account which Spencer gives has so early an origin.

The connexion of the unicorn with the lion in the royal arms of this country naturally forces itself upon the attention, and I find that the present arms were settled at the accession of George I. We owe the introduction of the unicorn, however, to James I.; who, as King of Scotland, bore two unicorns, and coupled one with the English lion when the two kingdoms were united. Perhaps some of your correspondents can inform me how two unicorns became the "supporters" of the "achievement" of the Scottish kings.

The position of the lion and unicorn in the arms of our country seems to have given rise (and naturally enough in the mind of one who was ignorant of heraldic decoration) to a nursery rhyme, which I well remember to have learnt:

"The lion and the unicorn
Were fighting for the crown,
The lion beat the unicorn
All round the town," &c. &c.;

unless it alludes to a contest for dominion over the brute creation, which Spenser's "rebellious unicorn" seems to have waged with the tawny monarch.

ERICA.

FLANAGAN ON THE ROUND TOWERS OF IRELAND.

Can you tell me anything of the history of a little work, of which the following is the title?—

"A Discourse of the Round Towers of Ireland, in which the errors of the various writers on that subject are detected and confuted, and the true cause of so many differences among the learned, on the question

of their use and history, is assigned and demonstrated. By John Flanagan, Kilkenny. Printed for the author by Thomas Kelly, 1843."

It was purchased by a Dublin bookseller at Jones' last sale (Catalogue, No. 704.), for 2s. 6*d*. The bookseller, who has kindly lent me the book, says that it was never printed in Kilkenny, and that it is very scarce, he having seen only one other copy of it. It is a small quarto of twenty-four pages, beautifully printed on good paper, which leads me also to believe that the book could not have been printed in Kilkenny. The author, whoever he was or is, boldly says that, "There are no Round Towers in Ireland," p. 8., and through the pages of the work runs a vein of nonsense, which would lead a person to think that the author was not very right in his mind. Still, there is something very remarkable in the production.

R. H.

Minor Queries.

St. Augustine's Six Treatises on Music.—Dupin mentions St. Augustine's *Six Treatises on Music*: do these exist in print? if so, in what edition are they to be found?

E. A. H. L.

Bishop Merriman.—A few years ago inquiry was unsuccessfully made in the *Gentleman's Magazine*, and elsewhere both in England and Ireland for some particulars of John Merriman, the first Protestant Bishop of Down and Connor.

In Cox's *Hibernia Anglicana* it appears that "Loftus, Archbishop of Armagh, was consecrated by the Popish Archbishop Curwin; Thomas Lancaster, the first Protestant Bishop of Kildare, was consecrated by Archbishop Brown; and John Merriman, the first Protestant Bishop of Down and Connor, was consecrated by Lancaster when Primate."

This Bishop Merriman had been chaplain to Queen Elizabeth; he was made Vicar of St. John's, Atheboy, in the first year of her reign, and was consecrated Bishop of Down and Connor, Jan. 19, 1568/9. He died in 1572.

The probable father of Bishop Merriman may be found in the *Rutland Papers*, published by the Camden Society, where *Mr. Meryman*, in a second list called *William Meryman*, who held some office in the "Kechyn," is selected as one of the attendants on Henry VIII. and Queen Katherine to the Field of the Cloth of Gold in 1520.

There was formerly a family of the name of Merriman residing in Ireland: does it now exist? In England there are several families of this name: are any of them descended from this source?

T. D. P.

The Escubierto.—Where can the effusions of the Capateiro da Bandarra be seen in England? And has any of your correspondents read them, so as to be

able to explain the nature of his language and teaching concerning the Escubierto? I believe it is admitted, that the doctrine of the Sebastianistas is superadded, exegetically, to that of the Capateiro, and is not to be found in him.

A. N.

J. Scandret.—I should be much obliged for any information respecting "J. Scandret, priest of the Church of England," the author of a little treatise entitled *Sacrifice, the Divine Service*, originally published in 1707; with a recommendation from the celebrated Charles Leslie, Chancellor of Connor. Mr. Parker, of Oxford, reprinted it in 1840; but as "N. & Q." had not then begun its useful career, the editor was unable to satisfy that curiosity which most readers feel respecting the authors of such books as merit their attention.

E. H. A.

Mary Horton.—I find in Burke's *Extinct Baronetage*, p. 269. (article "Horton of Chadderton"), that "William Horton, of Coley, in Halifax parish, died in 1739-40: by Mary his wife, daughter of (Thomas) Chester, Esq., he left an only daughter, *Mary*, living and unmarried in 1766." Can any one inform me whether this Mary Horton ever *married*, when she *died*, and where she was buried?

TEWARS.

Biblicus on the Apocalypse.—I shall feel much obliged if any reader of "N. & Q." will give me information respecting a series of articles which appeared about the year 1819 in some newspaper or periodical with the signature of *Biblicus* appended to them: they were intended, as far as I can learn, to be a sort of commentary on some portion of the Apocalypse. The writer left his work unfinished; but as many as appeared thus periodically were afterwards published in a separate pamphlet. I should be glad to know where a copy of this pamphlet is to be had; or in what paper the articles originally appeared.

F. N.

Cleopatra playing at Billiards.—Perhaps one of your readers, more learned in Shakspeare than myself, can tell me what game he refers to in the following extract:

"*Cleo.* Let us to billiards. Come, Charmian.

Char. My arm is sore: best play with Mardian."

Ant. and Cleo., Act II. Sc. 5.

Can the game of billiards, as we now have it, boast of such high antiquity as to have been played by "the serpent of Old Nile;" or is the mention of it simply one of the great poet's anachronisms?

CUTHBERT BEDE, B.A.

"*Then comes the reckoning*," &c.—Who is the author of the following well-known couplet?

"Then comes the reckoning when the feast is o'er,
The dreadful reckoning, when men smile no more."

A CONSTANT READER.

Giving the Sack.—Will any of your numerous readers kindly explain to me the *origin* of the phrases "to give any one the sack or bag," and "einem einen Korb geben"? We must all be aware of their acceptance.

THOMAS LAWRENCE.

Ashby-de-la-Zouch.

Scotch Provincial Tokens of the Seventeenth Century.—Can any of your readers inform me if there were any of these tokens, which were so abundant throughout England, Wales, and Ireland, issued in Scotland?

R. H. B.

Burial of Sir John Moore.—You have had many very interesting communications respecting the justly admired poem on "The Burial of Sir John Moore." Let me ask whether it was a matter of fact, that they "buried him darkly at dead of night"? I believe the clergyman who read the service is now living near Hereford, and that he will state that the interment took place *in the morning* after the battle.

BALLIOLENSIS.

Mexican, &c. Grammar.—I hope some of your readers can tell me where I may get a grammar of the language of the Mexicans, Chilians, or any other of the tribes of South America. The Spanish missionaries compiled

grammars of some of the South American tongues; but I think they must have become scarce, as I can never find one in any catalogue of old books.

W. B. D.

Foundation Stones.—In the *Illustrated News* of the 29th of May, is an account of the masonic jewels for the grand lodge of England, including three ivory gavels for "laying foundation stones:" hence arise the following Queries.

When did the laying of foundation stones first become a ceremony?

What old foundation stones have been restored to light, showing the date of laying, and the accessories used, whether oil, wine, and corn, or what else? I have never seen an allusion to such discovery in the demolition of old buildings.

JNO. D. ALLCROFT.

Oxford Square.

Mary Faun.—Can any of your subscribers give me any account of the ancestry of Mary Faun said to have married Thomas Charlton, Esq.? See Burke's *Landed Gentry*, vol. i. p. 209.

B.

Tonson and the Westminsters.—I have a small duodecimo print, in which are represented three scenes,—

A man tossed in a blanket.

A man flogged.

A man begging.

This victim is said to be Jacob Tonson, the printer. The tormentors, who are all in collegiate dresses, are said to be Westminster Collegians.

Are these scenes facts or fictions?

What was Tonson's offence?

Is there any other explanation of the print?

I hope some old Westminster to whom the school tradition may have descended will be kind enough to answer these Queries.

GRIFFIN.

Minor Queries Answered.

Lady Farewell's Funeral Sermon.—Would any of your correspondents help me to unravel the mystery (if there be any) involved in the typography of the Latin portion of the following title of a book "printed for Edw. Brewster, at the Crane, in St. Paul's Church-yard, 1661?"

"Magna Charta; or the Christian's Charter Epitomized. In a Sermon preached at the Funerall of the Right Worshipfull the Lady Mary Farewell at Hill-Bishops near Taunton, by Geo. Newton, Minister of the Gospel there.

D. FareweLL obIIIt MarIa saLVtIs

In anno

Hos annos posItos VIXIt & Ipsa

VaLe."

W. A. J.

[The information required by our correspondent is more quaint and curious than difficult to supply. The four lines with which the title concludes form a chronogram, or an inscription comprising a certain date and number, expressed by those letters inserted in larger characters; which are to be taken separately and added together, according to their value as Roman numerals. When the arithmetical letters occurring in the first two lines are thus taken, they will be found to compose the year 1660, when the Lady Farewell died, as the words declare; and when the numerals are selected from the last two lines, they exhibit 74, her age at the time, as they also indicate; in the following manner:—

D	500	I	1
LL	100	VIXI	17
II	2	I	1
MI	1001	VL	55
LVI	56		—
I	1		74
	—		—
	1660		

The lady who is commemorated in this inscription was the daughter of Sir Edwald Seymour of Berrie Castle, in Devonshire, Baronet, and wife of "the excellently-accomplished Sir George Farewell, Knight, who died May 14, 1647;" as it is recorded on his monument at Hill-Bishops. In the same

epitaph it is stated, that she was the mother of twenty children, and that she died Dec. 13, 1660; and the inscription concludes with these verses to the united memory of Sir George and Lady Farewell:

"A person graceful, learn'd, humble, and good,
Well match'd with beautie, virtue, and high blood:
Yet, after sufferings great and long, both dead
To mind us where great worth is honour'd."

Collinson's *Somersetshire*, vol. iii. p. 255.

The practice of making chronograms for the expressing of dates in books, epitaphs, and especially on medals, was extremely common in the sixteenth and seventeenth centuries. One of the most remarkable is that commemorating the death of Queen Elizabeth:—

"My Day Is Closed In Immortality:"

the arithmetical formula of which is $M = 1000 + D = 500 + C = 100 + III = 3 = A. D. 1603$. In the second paper by Addison on the different species of false wit (*Spectator*, No. 60) is noticed the medal that was struck of Gustavus Adolphus, with the motto:

"ChrIstVs DuX ergo trIVMphVs."

"If you take the pains," continues the author, "to pick the figures out of the several words, and range them in their proper order, you will find they amount to MDCXVVII, or 1627; the year in which the medal was stamped."

There is one peculiarity in the chronogram sent by our correspondent, which singularly illustrates a passage in Shakspeare, and by which also it is most amusingly illustrated. It will be observed, that the Rev. G. Newton takes advantage of the double letters at the end of Farewell, to express 100: and it will be remembered that "good M. Holofernes," in *Love's Labour's Lost*, introduces the same thought into his sonnet as an exquisite and far-fetched fancy:

"If Sore be sore, then *L to Sore*
 Makes Fifty Sores: Oh sore L!
Of *One* sore I *an Hundred* make,
 By adding but *One more L*."]'

Sir E. K. Williams.—Will any gentleman refer me to the pedigree of Lieut.-Gen. Sir Edmund Kenyon Williams, a distinguished Peninsular officer, who died about three years ago? And also, where can I find or obtain such a book as the *History of Aberystwith, or Blaina Gwent*?

C. W.

Bradford.

[Sir Edmund Keynton Williams, K.C.B., born 1779, at Mathern, county of Monmouth, died Dec. 7, 1849, Colonel of the 80th Regiment of Foot, was only son of the Rev. Henry Williams, Vicar of Undy, county of Monmouth; who was second son of Edmund Williams, of Incasryddit, in the parish

of Bedwelty, county of Monmouth; and grandson of William Williams of the same place. Where any farther account of his family can be found we know not.]

Order of the Cockle.—What sort of Order was this? Was it the Order of *St. Michael*? It is mentioned incidentally by John Knox in his *History of the Reformation of Religion in Scotland* (book v.):

"In the end of January [1566] arrived an ambassador from France, named Monsieur Rambullet, having with him about forty horse in train, who came from England. He brought with him the Order of the Cockle from the King of France to the king [Lord Darnley], who received the same at the mass, in the chapel of the palace of Holyrood House."

In 1548, also, the Duke of Chatelherault, and the Earls of Huntly, Argyle, and Angus, had been invested with the same Order (book i.). Of course, Knox was always ready to ridicule such "remnants of paganism and popery."

R. S. F.

Perth.

[The order which Dudley received was that of St. Michael. There was formerly in France an order "du navire et de la coquille de mer," instituted, says Perrot^[2], by St. Louis, in 1269, in memory of a perilous expedition which he made by sea for the succour of Christians; but adds, "il a peu survécu à son fondateur."]

Footnote 2:([return](#))

Collection Historique des Ordres de Chevalerie. Paris, 4to. 1820, p. 270.

Waller Family.—I find from Clutterbuck's *Herts*, vol. ii. p. 476., that Sir Henry Boteler, Kt., of Hatfield Woodhall, Herts, married to his first wife, at Watton Woodhall, Herts, July 26, 1563, Katherine, daughter of Robert Waller, of Hadley, and widow of Mr. Pope. I have examined all the pedigrees of the Wallers I can find to ascertain to which branch of them this lady belonged. Can any of your readers supply me with any particulars of her family?

TEWARS.

[Possibly from the Wallers of Groombridge, county of Sussex. Thomas Waller, of Lansdall, in that county, second son of Thomas Waller, of Groombridge, had a son, Thomas, whose only daughter and heir, Catherine, married Thomas Pope, of Henfield, county of Sussex. In such cases the Christian name given by Clutterbuck may be wrong.—See the Histories of Kent and Sussex for the account of the Wallers.]

Life of St. Werburgh.—In King's *Vale Royal*, and other works on Cheshire antiquities, reference is made to a *Life of St. Werburgh* in verse, by Henry Bradshaw, a monk of Chester. I am anxious to ascertain whether the original MS. is now in existence; and, if not, in what collection a *copy* of the poem is preserved?

T. H.

[Mr. Hawkins of the British Museum edited a reprint of this *Life of St. Werburgh* for the Chetham Society, and in Mr. H.'s preface will be found all that is known of the existing copies of the printed work. The Editor did not know of any manuscript copy of the *Life*.]

Blindman's Holiday.—I have frequently heard the term "Blind Man's Holiday" used when it is getting dark in the evening, and one cannot see to read or write, work, &c. I have asked several persons if they knew the origin and reason of application of this expression, but can obtain no satisfactory explanation. Can any of your readers furnish one?

W. H. C.

[Florio has "*Feriato*, vacancy from labour, rest from worke, *blindman's holiday*." That amusing old antiquary, Dr. Pegge, made a query of this term about half a century ago. He says, "The twilight, or rather the hour between the time when one can no longer see to read, and the lighting of the candle, is commonly called *blindman's holiday*: *qu.* the meaning or occasion of this proverbial saying? I conceive, that at that time, all the family being at leisure to converse and discourse, should there be a blind person in the family, it is the time when his happiness is greatest, every one then being at liberty to attend to, and to entertain him."—*Anonymiana*, cent. iii. sect. xviii.]

Ab. Seller.—Any information respecting Ab. Seller, rector of Combentynhead, Devon, and author of *The Devout Communicant, assisted with Rules for the Worthy Receiving of the Blessed Eucharist*, London, 1686, will be much valued by

E. D. R.

[Abednego Seller was a native of Plymouth, educated at Lincoln College, Oxford; minister of Combentynhead, in Devonshire, and subsequently vicar of St. Charles, Plymouth; but was deprived for refusing to take the oaths to William III. In Hearne's *MS. Diaries*, 1710, vol. xxv. occurs a notice of him:—"Mr. Abednego Seller was another Nonjuror, and had also collected an excellent study of books; but as he was a man of less learning than Dr. Thomas Smith [the editor of Bede], so his books

were inferior to them, and heaped together with less discretion." Another notice of him occurs in Granger's *Biog. Dict.*, vol. iv. p. 11.;—"Mr. Ashby, President of St. John's College, Cambridge, has a copy of *Konigii Bibliotheca*, interleaved and filled with MS. notes by A. Seller." He was the author of several works which are given in Watt's *Bibliotheca Britan.*, but the following is omitted: *Remarks upon the Reflections of the Author of 'Popery Misrepresented,' &c. in his Answerer, particularly as to the Deposing Doctrine*, Anon., London, 4to. 1686. Another work has also been attributed to him, viz. *Considerations upon the Second Canon in the Book entitled 'Constitutions and Canons Ecclesiastical,' &c.* Lond., 4to. 1693. Seller died about 1720, aged seventy-three. A letter from Seller to Humphrey Wanley, concerning Greek music, &c., will be found in the Harl. MSS. No. 3782, Art. 26. Consult also Wood's *Athenæ Oxon.*, vol. iv. p. 563. edit. Bliss.]

Martin-drunk.—1. Thomas Nash, in his classification of drunkards, describes the seventh species as "Martin-drunk, when a man is drunk, and drinks himself sober ere he stir." What is the origin of the expression "Martin-drunk?"

2. This passage reminds me of a line, which I fancied I had read in Lord Byron, but which I am now unable to trace. It is (if I remember aright):

"And drinking largely sobers one again."

Can you give me a reference for this, either in Byron or any other of our poets?

HENRY H. BREEN.

St. Lucia.

[2. The latter passage occurs in Pope's *Essay on Criticism*, line 215:—

"A little learning is a dangerous thing!
Drink deep, or taste not the Pierian spring:
There shallow draughts intoxicate the brain,
And drinking largely sobers us again."]

Bagster's English Version.—Who edited Bagster's English version of the *Polyglott Bible*? The preface is signed T. C. Whence is the motto:

Πολλαι μεν θνητοις Γλωπται, μια δ' Αθανατοισιν;

A. A. D.

[The late Dr. Thomas Chevalier was the editor, and wrote the Preface; and the Rev. H. F. Cary supplied the Greek motto.]

Replies.

REPLY TO MR. HICKSON'S OBJECTIONS.

Vol. v., pp. 554. 573.)

That MR. HICKSON should have discovered no graver objections to certain suggestions of mine respecting the text of Shakspeare than those he has brought forward, is of itself no slight testimonial in their favour.

In one instance I have already (Vol. v., p. 210.) shown MR. HICKSON (I trust *satisfactorily*) that his then somewhat similar objection had no weight; nor do these now advanced appear much more formidable.

As to the passage from *As You Like It*, which MR. HICKSON remarks is capable of a moral as well as a physical interpretation—undoubtedly it is! But, in the first place, it must still remain a matter of opinion *which* sense best accords with the context: and, secondly, even admitting the moral sense to be the true one, still it does not necessarily disturb the analogy between it and Imogen's allusion to the *jay of Italy*. In that case, also, the *moral* sense may be understood as implying the absence of all principle other than that derived from her own gaudy vanity.

Were I disposed to cavil, I might, in my turn, question MR. HICKSON's estimate of Phebe's beauty. Surely Rosalind's depreciation of it is not real, but only assumed, for the purpose of humbling, Phebe! *Inky brows, black silk hair, bugle eye-balls, cheek of cream*—these are not items in a catalogue of ugliness!

MR. HICKSON's second objection (p. 573.) is to my explanation of the demonstrative *that* in the Duke's opening speech in *Measure for Measure*. He thinks that, according to "the language we in England use," the Duke would have used the word *this* instead of *that*.

Does MR. HICKSON seriously mean to say that Shakspeare's language is to be scanned by our present ideas of correctness? Is the bold sweep of the Master's hand to be measured by the graduation of modern convention? Are there no instances in Shakspeare of the indiscriminate substitution of personal and impersonal pronouns—of active and passive participles—of words and phrases waiting upon the magician's wind, like familiar spirits, to be moulded to his will, and acknowledging no rule but of *his* creation?

But, in the present case, I will not admit that any such licence is necessary. To MR. HICKSON's question, "Is this the language we in England use?" I answer, It is!

We do, even at the present day, say to a messenger, "Take *that* to," &c., even before we have transferred the missive from our hand to his. I can even fancy an individual, less anxious perhaps about grammar than benevolence, stretching forth to some unfortunate, and exclaiming, while yet his intended gift was in his own keeping, "*There needs but THAT to your relief—there it is!*"

It does not seem to have occurred to MR. HICKSON that the same "fatal objection" which he brings forward against *that*, might also be pleaded against *there*. When the Duke says, "*There* is our commission:" why not, "*Here* is our commission"? *There* stands precisely in the same relation to *that*, as *here* does to *this*!

A. E. B.

Leeds.

THE TERM "MILESIAN."

(Vol. v., p. 453.)

In reference to the communication of MR. RICHARDS, but I have not seen MR. FRASER's Query, I beg to observe, for the honour of "Old Ireland," that upwards of thirty years since, the Royal Irish Academy awarded to me a prize of 80*l.*, with the Cunningham gold medal, for an *Essay on the Ancient History, &c. of Ireland*. It was published in the sixteenth volume of their

Transactions to an extent of 380 pages quarto; and Mr. Moore has done me the honour to write to me, that it was his guide throughout the first two volumes of his history of this country. In that Essay, I have written very fully of the "Milesian" colonisation; so called, not directly from Milesius himself, but from his two sons, Heber and Heremon, who led the expedition. The native annalists represent the course of the emigrants through the Mediterranean by such progressive stages as indicate the state and progress of the Phœnicians after their exodus under the conduct of Cadmus; though the ingenuity of the Bards occasionally introduced that colouring of romance, which perhaps can alone make very remote objects distinguishable. External testimonies of these oriental wanderers are traceable through *Herodotus*, lib. iv. c. 42.; *Pliny*, c. 86.; *Nennius*, *Hist. Britt.*, c. 9.; *Thomas Walsingham*, *Ypodigma Neustriæ* ad ann. 1185. The venerable WINTOUN adopts all the traditions of the Irish Chronicles on the subject (*Cronyk. of Scotl.*, lib. ii. c. 9.); and Macpherson declares (*Dissertation*, p. 15.) that such of the ancient records of Scotland as escaped the barbarous policy of Edward I. support this account. The writers on Spanish history, the *Hispania Illustrata*, De Bellegarde's *Hist. Gen. d'Espagne*, vol. i. c. i. p. 4., Emanuel de Faria y Sousa, &c., carry the links through Spain; and such indeed has been the long and general faith in the tradition, that it has been actually embodied, even to the names of those alleged leaders Heber and Heremon, in an act of parliament (of Ireland I must admit) in the eleventh year of the reign of Queen Elizabeth, and through an occurrence therein engrafted upon it is expressly derived one of Her Majesty's—

"Auntient and sundrie strong authentique tytles for the Kings of England to this land of Ireland."

JOHN D'ALTON.

48. Summer Hill, Dublin.

BEN. JONSON'S ADOPTED SONS.

(Vol. v., p. 537.)

I doubt if *Alexander* Brome was one of Ben. Jonson's adopted sons. It is not improbable, however, that *Richard* Brome (author of the comedies of *The Northern Lass* and the *Antipodes*) was one. In Ben. Jonson's *Underwoods* is a poem to Richard Brome "on his comedy of *The Northern Lass*," which commences thus:

"I had you for a servant once, Dick Brome,
And you perform'd a servant's faithful parts;
Now you are got into a nearer room
Of fellowship, professing my old arts."

Thomas Randolph was certainly one of Jonson's sons. See in his *Poems* (4th edit. p. 17.): "A gratulatory to M. Ben. Jonson for his adopting of him to be his *son*."

In Jonson's *Underwoods* is a poem "To my *dear Son* and right learned Friend Master Joseph Rutter." This is in praise of his "first play," but I am unable to state what that play was; nor can I give further information respecting Master Joseph Rutter, than that he is apparently the author of "An Elegy upon Ben. Jonson" in *Jonsonus Viribus*.

Of William Cartwright Ben. Jonson used to say, "*My son*, Cartwright, writes all like a man." (Campbell's *Specimens of the British Poets*, ed. 1841, p. 183.)

James Howell was another of Jonson's sons, and has, in *Jonsonus Viribus*, some lines "Upon the Poet of his Time, Benjamin Jonson, his honoured Friend and *Father*."

Shackerley Marmion seems to have been another son. See in *Jonsonus Viribus*, "A Funeral Sacrifice to the sacred memory of *his thrice-honoured father* Ben. Jonson."

If Jonson really had twelve sons, it is not improbable that some of the following were of the number: Sir Kenelm Digby, Thomas Carew, John Cleveland, Sir John Suckling, Thomas May, Edward Hyde (afterwards Earl of Clarendon), Owen Feltham, Jasper Mayne, Richard West, John Vaughan, Thomas Hobbes.

I should have been disposed to have added to the above illustrious list the name of Edmund Waller, but for a statement of Aubrey, who says, "He told me he was not acquainted with Ben. Jonson" (Aubrey's *Lives*, p. 564.).

Aubrey (*Lives*, p. 413.), speaking of Ben. Jonson, says:

"Serjeant Jo. Hoskins, of Herefordshire, was his *father*. I remember his sonne (S^r Bennet Hoskins, baronet, who was something poeticall in his youth), told me, that when he desired to be adopted his son, 'No,' sayd he, 'tis honour enough for me to be your brother; I am your father's son, 'twas he that polished me, I do acknowledge it.'"

I observe that, prefixed to Randolph's *Poems*, are some lines by Richard West, B.A., and student of Christ's Church: "To the pious Memory of my dear *Brother-in-Law*, Mr. Thomas Randolph." As West must have been unmarried, and as I believe Randolph was also unmarried, it is possible that West calls him his brother-in-law from his being also an adopted son of Ben. Jonson.

C. H. COOPER.

Cambridge.

SHAKSPEARE'S SEAL.

(Vol. v., p. 539.)

There is a very full and curious account of a *ring*-seal (of which I possess two red wax impressions), supposed to have belonged to Shakspeare, in a work unassumingly entitled *A Guide to Stratford-upon-Avon*, by R. B. Wheler, published in 1814. I presume *that* is the seal—or, rather, *ring*-seal—to which reference is made; but how far Mr. Wheler's statements and speculations may encourage "belief in the genuineness of this relic," your correspondent, and others taking any interest in such matters, must for themselves determine.

As the publication above named is before me, it may not be unacceptable to give a summary of Mr. Wheler's narrative, which occupies eight concluding

pages of the *Guide*. It appears that on the 16th March, 1810, an ancient gold ring, weighing 12 dwts., and bearing the initials "W. S.," engraved in Roman characters, was found by a labourer's wife upon the surface of the mill-close adjoining Stratford churchyard, being the exact spot whereon Mr. Oldaker since erected his present residence. It had undoubtedly been lost a great many years, being nearly black; and, continues Mr. W.,—

"Though I purchased it upon the same day, for 36s. (the current value of the *gold*), the woman had sufficient time to destroy the 'precious *æru*go' by having it unnecessarily immersed in *aqua fortis*, to ascertain and prove the metal, at a silversmith's shop, which consequently restored its original colour. It is of tolerably large dimensions, and evidently a gentleman's ring of Elizabeth's age. Similar seal-rings are represented on cotemporary paintings and monuments: and the crossing of the central lines of the 'W.' with the oblique direction of the lines of the 'S.' exactly agree with the characters of that day. For proof we need wander no farther than Stratford Church, where the Totness and Clopton tombs will furnish representations of rings, and Shakspeare's monument of letters, perfectly corresponding in point of shape. The connexion or union of the letters by *the ornamental string and tassels*" [or *True Lover's Knot*, according to your correspondent], "was then frequently used, of which numberless instances may be found upon seals and upon inscriptions, in painted windows, and in the title-pages of books of that period; and for further coincidence of circumstances, it may be observed over the porch leading into the hall of Charlote House near Stratford (erected in the early part of Elizabeth's reign, by the very Sir Thomas Lucy said to have prosecuted Shakspeare for deer-stealing), that the letters 'T. L.' are surrounded in a manner precisely similar."

After adverting to many vain efforts made by him to discover whether there existed anywhere Shakspeare's seal attached to letter or other writing, Mr. Wheler states that he had examined—

"A list of all the inhabitants of Stratford assessed to the levies in 1617, wherein I cannot discover any apparently *respectable* person the initials of whose name agree with 'W. S.:' but from this assessment,

though probably copied from an anterior one, nothing conclusive can be estimated, it being made in the year subsequent to Shakspeare's death; and I should, from a close observation of the ring, be inclined to suppose that it was made in the early part of the poet's life. Mr. Malone, in a conversation I had with him in London," (adds Mr. Wheler), "the 20th April, 1812, about a month before his death, said that he had nothing to allege against the probability of my conjecture as to its owner."

Mr. W. afterwards proceeds:

"That such a seal was used by a person connected with Shakspeare by a marriage is certain; for I possess an impression of the seal (and apparently a seal-ring) of Adrian Quiney, bailiff of Stratford in 1559-60; and who, I have every reason to believe, was the uncle of Thomas Quiney, our poet's son-in-law. This seal of Quiney's, which is appended to a deed dated June 28, 9 Eliz., 1567, being a conveyance of property in Bridge Street, Stratford, very minutely corresponds with the Shakspeare ring in size, and has a very near resemblance to it in *the string and tassels* uniting the Roman initials 'A. Q.;' which ornamental junction is carved somewhat similar to what is now called *The True Lover's Knot*, and in the Shakspeare ring the upper bow or flourish resembles a heart."

In Shakspeare's age—

"Seal-rings were very fashionable, but were probably more limited than at present to the nobility and respectable families; for I still confine myself to the respectability of its proprietor.... After numerous and continued researches into public and private documents, I find no Stratfordian of that period so likely to own such a ring as Shakspeare."

Mr. Wheler concludes—

"At present, I possess no positive proof whatever. Let it be remembered that my observations are merely relative. I yet hope to meet with an impression of the ring in my possession; and in this I am more particularly encouraged by the fact, that should success attend

the investigation, this seal-ring would be the *only existing article* PROVED to have originally belonged to our immortal poet."

When Mr. Wheler wrote, the signatures in Montaigne's work, &c. had not been restored to the light.

A HERMIT AT HAMPSTEAD.

REASON AND UNDERSTANDING ACCORDING TO COLERIDGE.

(Vol. v., p. 535.)

Your correspondent C. MANSFIELD INGLEBY will pardon me if I deny the discrepancy in Coleridge's statements on the difference between these faculties. Coleridge refuses to brutes the possession of reason as a contemplative faculty; he allows them, that which in kind differs from reason, the understanding *in a certain degree*, and asserts that they do possess, in a very marked and characteristic manner, instinct, which, in degree only, falls below understanding. Instinct is distinguishable in *degree* from understanding. Reason is distinguishable from it in *kind*. Some kinds of brutes, as dogs and elephants, possess more intelligence than others, as tigers and swine; and some individual dogs possess more of this intelligence than others. This intelligence arises from the superior activity of the "faculty judging according to sense;" and, when Coleridge says that it is not clear to him "that the dog may not possess an analogon to words," he might have gone, I think, further, and have said, with much probability of truth on his side, that the dog *has* this analogon of words. I am sure I have often known a dog's thoughts by his own way of expressing them, far more distinctly than I am sometimes able to gather a fellow man's meaning from his words. Nay, much as I love and venerate Coleridge—his goodness, his genius, his writings, his memory—I find a dog sometimes far more intelligible. Language is a property of the understanding, but it cannot be developed in words unless there be in the creature an adequate degree of the faculty. This degree of the faculty, dogs have not. If they had it, they might fairly be expected to speak, read, and write. What we want is the man, or the observation and experiment, which shall show us where the line is to be

drawn, if in the nature of such gradations lines can be drawn at all, which shall distinguish the degree at which instinct overlaps understanding. The case is perhaps too hopelessly complicated. Coleridge has carefully guarded his expressions, that they should not seem to assert for brutes more than he can *prove* that they possess, by the use of the words "analogous or fully equivalent." That brutes can and do reflect, abstract, and generalise, it needs but an understanding of the terms, and some observation of their habits, to feel assured.

CASPAR.

GENERAL WOLFE.

(Vol. v., pp. 185. 398. &c.)

Since my last communication relative to this celebrated soldier, I have fallen in with a volume of the *London Chronicle* for the first half of the year 1760, and from it I send the following extracts: although there is more information relative to the battle, these only I thought worth insertion in "N. & Q." The first is entitled:

"A CALL TO THE POETS, ON THE TAKING OF QUEBEC.

"While to brave Wolfe such clouds of incense rise,
And waft his glory to his native skies;
Shall yet no altar blaze to Moncton's name,
And consecrate his glorious wound to fame;
Shall Townshend's deeds, o'er Canada renown'd,
So faint in British eulogies resound!
No grateful bard in some exalted lay
Brave Townshend's worth to future times convey
Who, for his country, and great George's cause,
Forsook the fulness of domestic joys,
To crush 'midst dangers of a world unknown,
The savage insults on the British crown.
See him return'd triumphant to his king,
Wafted on Vict'ry's, and on Glory's wing:

Hast thou, great patroness of martial fire,
No fav'rite genius, Clio, to inspire?
Shall worth, like his, unnotic'd pass away
But with the pageant of a short-liv'd day?
No; Soul of numbers, tune the votive strings
On which thou sing'st of heroes and of kings;
Rouse from ungrateful silence some lov'd name
Or from the banks of Isis, or of Cam;
Bid him, tho' grateful to the dead, rehearse
The living hero in immortal verse:
So shall each warlike Briton strive to raise,
Like him, a monument of deathless praise;
So shall each patriot heart his merit move
By the warm glow of sympathy of love."—T. D.
P. 71. Jan. 19.

At p. 120., June 31st, is "A New Song, entitled and called, Britain's Remembrancer for the Years 1758 and 1759." The fourth verse runs as follows:

"Quebec we have taken, and taken Breton;
Tho' the coast was so steep, that a man might as soon,
As the Frenchmen imagin'd, have taken the moon,
Which nobody can deny."

May 10th, p. 449.: "Capt. Bell, late Aide-de-Camp to the great Gen. Wolfe, is appointed captain in the fifth regiment," &c. Under the date of June 28th is Gen. Murray's despatch.

Among the advertisements are, "A Discourse delivered at Quebec," &c., by the Rev. Eli Dawson (dedicated to Mrs. Wolfe); "Two Discourses by Jonathan Mayhew, D.D. of Boston;" and "Quebec, a Poetical Essay, in imitation of the Miltonic Style, composed by a Volunteer in the service; with Notes entertaining and explanatory."

A notice of the death of Sir Harry Smith, Bart., aide-de-camp to Wolfe, appears in the *Examiner* for October 22nd, 1811.

Among other instances of the name is a notice of Major J. Wolfe in *Gentleman's Magazine* for 1836, p. 334.

H. G. D.

"THE MILLER'S MELODY," AN OLD BALLAD.

(Vol. v., p. 316.)

The original ballad of "The Miller's Melody" is the production of no less a person than a "Doctor in Divinity," of whom the following are a few brief particulars.

James Smith was born about 1604, educated at Christ Church and Lincoln Colleges, in Oxford; afterwards naval and military chaplain to the Earl of Holland, and domestic chaplain to Thomas Earl of Cleveland. On the Restoration of Charles II. he held several Church preferments, and ultimately became canon and "chauntor" in Exeter Cathedral. He was created D.D. in 1661, and quitted this life in 1667. Wood informs us he was much in esteem "with the poetical wits of that time, particularly with Philip Massinger, who call'd him his son."

I have an old "broadside" copy of the ballad in question, "Printed for Francis Grove, 1656," which is here transcribed, *verbatim et literatim*, for the especial benefit of your numerous readers. It may also be found in a rare poetical volume, entitled *Wit Restored*, 1658, and in Dryden's *Miscellany Poems* (second edition, which differs materially from the first).

"THE MILLER AND THE KING'S DAUGHTER.

By Mr. Smith.

"There were two sisters they went playing,
With a hie downe, downe, a downe-a,
To see their father's ships come sayling in,
With a hy downe, downe, a downe-a.

"And when they came unto the sea-brym,
With, &c.

The elder did push the younger in;
With, &c.

"O sister, O sister, take me by the gowne,
With, &c.
And drawe me up upon the dry ground,
With, &c.

"O sister, O sister, that may not bee,
With, &c.
Till salt and oatmeale grow both of a tree,
With, &c.

"Sometymes she sanke, sometymes she swam,
With, &c.
Until she came unto the mill-dam;
With, &c.

"The miller runne hastily downe the cliffe,
With, &c.
And up he betook her withouten her life,
With, &c.

"What did he doe with her brest bone?
With, &c.
He made him a violll to play thereupon,
With, &c.

"What did he doe with her fingers so small?
With, &c.
He made him peggs to his violll withal;
With, &c.

"What did he doe with her nose-ridge?
With, &c.
Unto his violll he made him a bridge,
With, &c.

"What did he doe with her veynes so blew?

With, &c.

He made him strings to his violll thereto;

With, &c.

"What did he doe with her eyes so bright?

With, &c.

Upon his violll he played at first sight:

With, &c.

"What did he doe with her tongue so rough?

With, &c.

Unto the violll it spake enough;

With, &c.

"What did he doe with her two shinnes?

With, &c.

Unto the violll they danc'd *Moll Symes*;

With, &c.

"Then bespake the treble string,

With, &c.

O yonder is my father the king;

With, &c.

"Then bespake the second string,

With, &c.

O yonder sits my mother the queen;

With, &c.

"And then bespake the strings all three;

With, &c.

O yonder is my sister that drowned mee.

With, &c.

"Now pay the miller for his payne,

With &c.

And let him bee gone in the divel's name.

With, &c."

As this old ditty turns upon the making "a viol," it may be as well to add that this instrument was the precursor of the violin: but while the viol was the instrument of the higher classes of society, the "fiddle" served only for the amusement of the lower. The viol was entirely out of use at the beginning of the last century.

Moll (or Mall) Symms (mentioned in the thirteenth stanza) was a celebrated dance tune of the sixteenth century. The musical notes may be found in *Queen Elizabeth's Virginal Book*, in the Fitzwillian Museum, Cambridge; and in the curious Dutch collection, *Neder Lantsche Gedenck clank*, Haerlem, 1626.

EDWARD F. RIMBAULT.

SURNAMES.

(Vol. v., p. 509.)

I shall endeavour to answer some of MR. LOWER'S Queries.

1. Names having the prefix *Le* and ending in *er* or *re*. They are undoubtedly Norman or French, and generally relate to personal trade or employment, as *Le Mesurier*, *Le Tellier*, *Le Tanneur*, *Le Fevre*. Another class with the prefix *Le*, but of various terminations, are obviously of French origin, as *Leblanc*, *Lenoir*, *Lebreton*, *Lechaplain*, *Lemarchant*. All these came to us by the French Protestant refugees, or from Jersey and Guernsey.

2. The meaning of *worth*. This word generally implies a *military work*, and, I think, an *earth-work*; and I doubt whether *worth* and *earth* are not from the same root; I personally have been able to trace *works* in many places whose names end in *worth*. I am satisfied all such surnames were *local*, that is, derived from *places* so named from military mounds or *earth-works*.

3. The meaning of *Le Chalonneur*. It is evidently the same as our English name *Challoner*, which Cole admits into his dictionary as "the name of an ancient family." It means in old French either the *boatman*, from "chalun," a

boat; or a *fisherman*, from "chalon," a kind of net. As we have in English *Fisher*, in modern French *Lepêcheur*, in Italian *Piscatory*.

4. *Le Cayser*. The same as *Cæsar*, a name now, we believe, extinct amongst us, but preserved in our literature by Lord Clarendon and Pope. I suspect that it was of a class of *fancy* names which I shall mention presently.

5. Baird and Aird are Scotch names, and probably local. Jameson (whose authority is very low with me) derives *Baird* from *bard*, and *Aird* he does not mention. *Aird* or *ard* is Celtic for *high*, and is a common local denomination in Scotland and Ireland.

6. For the rest of the out-of-the-way names MR. LOWER mentions I can give no more explanation than of many thousands others which have been probably produced by some peculiarity or incidents in the first nominee, or some corruption of a better known name. As to this class of fancy names, I can give MR. LOWER a hint that may be of use to him. It used to be the custom at the old Foundling Hospital and in all parish workhouses, to give the children what I venture to call *fancy* names. I remember being shocked at the heterogeneous nomenclature that was outpoured on fifty or a hundred poor babes at the Foundling. I happened once to accompany a noble lady—the daughter of a great sea officer—to one of these Foundling christenings, when the names of Howe, Duncan, Jervis, and Nelson, were in fashion, and they were each given to half-a-dozen children; and while this was going on, my fair and noble friend whispered me, "What a shame! all these poor little creatures will grow up to be our cousins." Sometimes the names given were grotesque, such as ought not to have been permitted; and sometimes the children brought into the hospital, pinned to their clothes, names in which I suppose the poor mother may have had a meaning, but which seemed to us fantastical and extravagant.

Illegitimacy is a considerable source of strange names. I could give some droll instances. Corruption is another; there are half-a-dozen names of labourers in my village which are mere corruptions by vulgar pronunciation of some of the noblest names of the peerage.

MR. LOWER cannot have failed to observe the great tendency in the United States to vary the orthography, and of course, I suppose, the pronunciation

of some of their old English patronymics; not from any dislike to them, for the contrary sentiment, I believe, is very prevalent, but the emigrants who carried out the names were ignorant or indifferent as to the true orthography or pronunciation, and in time the departure grows more wide. Instances of this may be also found in the small towns of England, where MR. LOWER will find on the signs frequent deviations from the usual spelling of the commonest as well as of the rarer names.

C.

In glancing through Cole's MSS. in the British Museum, my eye rested on two paragraphs, which perhaps may be unknown to MR. LOWER. In Additional MSS. No. 5805. p. iv., Cole says:

"Before surnames were in use they were forced to distinguish one another by the addition of *Fitz* or *Son*, as John Fitz-John, or John the son of John, or John Johnson, as now in use. This was in the first Edward's time: nay, so late as the reign of Queen Elizabeth, in some places in France they had no surnames, but only Christian names, as the learned Monsieur Menage informs us: 'Il y a environ cent ans, à ce que dit M. Baluze, qu'à Tulle on n'avait que des noms propres, et point de surnoms.'—*Menagiana*, tom. i. p. 116. edit. 1729."

Again, in Cole's MSS., vol. xliii. p. 176., relating to a deed of the Priory of Spalding, Cole says:

"One observes in this deed several particulars: first that the Priory used a seal with an image of the Blessed Virgin, together with one of their arms; if possibly they used one of the latter sort so early as this John the Spaniard's time, in the reign, as I conceive, of King Richard I., when arms for the chief gentry were hardly introduced. Among the witnesses are two Simons, one distinguished by his complexion, and called Simon Blondus, or the Fair; the other had no name as yet to distinguish him by, and therefore only called here 'another Simon.' This occasioned the introduction of surnames, and shows the necessity of them."

J. Y.

Hoxton.

SIR JOHN TRENCHARD.

(Vol. v., p. 496.)

Your Querist E. S. TAYLOR will find an interesting account of the manner in which a pardon was obtained for John Trenchard, afterwards secretary of state under William III., in MR. HEPWORTH DIXON'S work on William Penn. MR. TAYLOR is evidently wrong in supposing that the pardon, of which he furnishes a copy, was issued in 1688, and at the very critical period to which he refers it. It was issued in 1686, that being the third year, reckoning by the old style, of King James's reign; so that his quotation from Pepys, and his suggestion of a reason for the pardon, are beside the purpose. It appears from MR. DIXON'S account, that William Penn was the mediator between Trenchard and the king; but the circumstances which led to it were so curious, that I transcribe part of the statement from page 276 of the new edition.

"Lawton, a young man of parts and spirit, had attracted Penn's notice; in politics he was a state whig, and it was at his instance that he had braved the king's frown by asking a pardon for Aaron Smith. One day over their wine at Popples, where Penn had carried Lawton to dine, he said to his host, 'I have brought you such a man as you never saw before; for I have just now asked him how I might do something for himself, and he has desired me to obtain a pardon for another man! I will do that if I can; but,' he added, turning to Lawton, 'I should be glad if thou wilt think of some kindness for thyself.' 'Ah,' said Lawton, after a moment's thought, 'I can tell you how you might indeed prolong my life.' 'How so?' returned the mediator, 'I am no physician.' Lawton answered, 'There is Jack Trenchard in exile; if you could get leave for him to come home with safety and honour, the drinking of a bottle now and then with Jack would make me so cheerful that it would prolong my life.' They laughed at the pleasantry, and Penn promised to do what he could. He went away to the Lord Chancellor, got him to join in the solicitation, and in a few days the future secretary was pardoned and allowed to return to England."

It appears also from Mr. DIXON's narrative, that Trenchard was employed by Penn to dissuade James from his bigoted and violent course, and that he had interviews with the king for this purpose. MR. TAYLOR will find in the same place curious particulars, given on the authority of Lawton himself, concerning the intrigues which preceded the fall of James.

SYDNEY WALTON.

PAPAL SEAL.

(Vol. v., p. 508.)

I have in my possession a *leaden* seal, which has on the one side a precisely similar impression to that described by H. F. H. in p. 508. of "N. & Q.:" viz. two heads, with a cross between them, and the letters "S P A S P E" over them. The head under "S P A" has straight hair and a long pointed beard. The other head, under "S P E," has curled hair and a short curled beard, the whole surrounded with a circle of raised spots. On the other side of the seal is the following inscription, also surrounded by a circle of raised spots:

✠
· E V G E N
I V S . P . P
· I I I I ·

It was attached by a strong cord that runs through the substance of the seal to a parchment document that, some thirty years since, I found being cut into strips for labels for a gardener. The few fragments I was enabled to preserve showed that the document related to some conventual matter, from the repetition of the words "Abbati, Conventii, et Monasterii." One of the lines commences with an illuminated capital of about half an inch in height, as follows:

"Militanti ecclie licet immeriti disponente domino presidente"....

Another line commences—

"Persone tam religiose qua seculares necnon duces Marchione"....

On one of the fragments, apparently an endorsement on the back of the document, are the names "Anselmus," and beneath it "Bonanmy" or "Bouanmy." There are unfortunately no traces of the name of any place, or of a date. The writing is very clear and in good condition. Is the document a papal bull? I shall be obliged by any reply to my inquiries.

R. H.

Kensington.

MARKET CROSSES.

(Vol. v., p. 511.)

It is stated in Gillingwater's *History of Bury St. Edmunds*, edition 1804, that "The theatre, an elegant structure, originally the *Old Market Cross*, was erected in the year 1780, from a design by Mr. Adams."

In Alexander Downing's *Plan of the ancient Borough of Bury St. Edmunds*, published in 1740, there is a very good view of the old *Cross*. It appears from this print to have been a fine old building; the lower part open. It is possible that there might have been a chapel in the upper part of the cross, as it appears in the print on Downing's map to have been three stories high, with a bell turret or tower.

Downing's *Plan* is not scarce: it is one large sheet, and is engraved by W. C. Toms, sculpt.

In Thomas Warren's *Plan of Bury*, subsequently published, there is a view of the *New Cross*, with the theatre above it, as built in 1780.

J. B.

Since I sent you a hasty Note respecting the Old Market Cross at Bury St. Edmunds, with reference to your correspondent's Query, I bethought me of the old market cross which formerly stood in the Great Market Place at Norwich. Blomefield, in his *History of Norfolk*, vol. ii. p. 652., gives an account of that ancient cross, which is too long to quote but he states that "it

was a neat *octagonal* building, with steps round it, and an *oratory or chapel in it*, with a chamber over it."

Now possibly there might have been such a "chapel" in the old cross at Bury, wherein "Henry Gage was married in 1655;" for I put faith in all that Mr. Rookwood Gage said or wrote.

There is still standing, at Wymondham in Norfolk, an old wooden market cross, with a chamber over it, supported by wooden columns: it is an octagon building. Blomefield makes no mention of it. An etching was published of this cross, by — Dixon, of Norwich, some few years back.

J. B.

Replies to Minor Queries.

The two Gilberts de Clare (Vol. v., p. 439.).—In reference to No. 2. of "Irish Queries", as to the relationship which existed between the two Gilberts de Clare, Earls of Gloucester, I beg to send you the information required by your correspondent MAC AN BHAIRD.

Gilbertus Co. Gloucest. & Hertf.: obiit 14 Henr. 3.	=	Isabella, tertia natu filiarium & cohær. Will. Mareschalli Co. Pembr.
Ricardus, Co. Gloucest. & Hertf.: obiit 46 Henr. 3.	=	Matilda, filia Joh. de Laci Comit. Lincoln ux. 2.
Gilbertus, Comes Glouc. & Hertf. cogn. Rufus, ob. 24 Ed. 1.	=	Joanna de Acres, filia Regis Ed. 1.
	/\	

See also Miller's *Catalogue of Honor*, pp. 369-373.; Vincent's *Errours of Brooke*, pp. 122, 123.; Yorke's *Union of Honour*, pp. 109, 110.

FARNHAM.

Farnham, Cavan.

Baxter's Shove, &c. (Vol. v., p. 416.).—I fear it may savour somewhat of presumption in me to offer the following remarks to one who confesses himself to be a collector of Baxter's works; but if they afford no information to your correspondent MR. CLARK, they may probably prove acceptable to other less sedulous inquirers after the writings of this truly pious man.

Baxter, in his enthusiastic zeal in the cause of religion, did not hesitate to append to some of his popular tracts, titles more calculated to excite the curiosity of the vulgar than engage the attention of the refined reader; as the age became more enlightened, this breach of propriety was discontinued, and these records of genius and piety have been since reprinted under more appropriate appellations. If I am not misinformed, the title of Baxter's *Shove* has undergone this transformation, and now appears under that of *The Call to the Unconverted*.

The two following works are doubtless familiar to your correspondent, viz.: *Crumbs of Grace for &c.*, and *Hooks and Eyes to &c.* I think the former is the original title to *The Saint's Rest*; but as to the latter, I am not able to say whether it has been issued under any new name or not.

M. W. B.

Frebord (Vol. v., pp. 440. 548.).—In some, if not in all, of the manors in this vicinity in which this right exists, the quantity of ground claimed as *frebord* is thirty feet in width from the set of the hedge.

LEICESTRIENSIS.

Devil (Vol. v., p. 508.).—If Διάβολος was used as an equivalent for Adversarius, I should say that "the rendering *would* be accurate" in no slight degree; especially when understood in the juridical sense. But the "adversarius in judicio" is the character of the Hebrew Satan in Job, c. i. and ii., and Zechariah, c. iii.; and the same appears clearly in Revelations, c. 12:

"The accuser of our brethren is cast down, which accused them before our God day and night."

The term διάβολος adds, to that of κατήγορος, the idea of falsehood and injustice, essential to the accuser of the Saints, but not expressed in the latter word. Why the word should mean "a supernatural agent of evil," I cannot form the slightest idea. The name of a thing does not express all which that thing is! *Physician* does not mean a natural agent of good. As little can I understand how the correctness of a derivation can form "a case of ecclesiastical usage."

With what words, manifestly and analogically Greek, but yet clearly derived in reality from the vague sources termed *Oriental*, nay even from Hebrew, are "the Septuagint and Greek Testament replete?" I say "clearly," because one paradoxical conjecture cannot obtain support from others.

I am surprised that MR. LITTLEDALE should be struck by the "similarity" of the gipsy word *Debel*, "God," "and our word devil," after himself admitting that our word is *diabolos*, and confining his attack to that "first link in the chain."

I will add a very few words on the other point, though not relevant. What is holy at one time, becomes the direct contrary in subsequent times and circumstances. Homer's Minerva ascended to heaven μετὰ δαίμονας ἄλλους, among the other dæmons. But that word in modern Europe means a devil of hell. *Deva* and *Devi* are (I believe) god and goddess in Sanskrit. *Div*, in Persian (MR. L. says), is a wizard or dæmon. I have no *Zend Avesta* at hand: but we require to know whether *Div* had a decidedly evil and Ahrimanic sense, in the language of the dualistic Pagan ages; or only in Ferdoosi and the like. If *afriti* is "blessed" in Zend, and "a devil" in Arabic, I again ask whether the allusion be to the literary remains of Arabic polytheism, or to Islam? I suspect the latter; and so, it would come to nothing.

A. N.

I think MR. LITTLEDALE'S difficulty about the same Hebrew word's representing both Διάβολος and *Adversarius* is, on the contrary, rather a confirmation of the old derivation. Had he forgotten that "the Adversary" is often technically used for the *Devil*? Surely there can be no more doubt that *Devil* comes from *Diavolo*, and that from Διάβολος, than that *journal* comes from *giorno*, and that from *diurnus*.

C.

Mummy Wheat (Vol. v., p. 538.).—Having a few grains of mummy wheat in my possession, I send you the following information concerning it, with a portion thereof as sample. About three years ago, when in New York, I purchased, at a sale of the Hon. Judge Furman's effects, a small parcel which was stated in his own writing to be "Egyptian wheat such as is mentioned in Scripture, and taken out of a mummy case."

I planted a few of the grains in a flower-pot, and they came up in an apparently very healthy and flourishing manner, with an appearance similar to that represented in Scriptural illustrations as Egyptian corn. But after attaining a height of about two inches, I noticed that it began to grow sickly, and in a short time afterwards died away. Upon examining the mould I found some of the grains still there; but they looked as though some very minute insect had eaten away the entire heart, leaving the shell only. It seemed to me that such insect must have been within, and not entered the grain from without.

Lately I have again tried in my garden a few of the grains I had reserved from the original stock. These, however, have not come up at all; and I find, on uprooting them, that the same sort of decay had taken place as occurred in New York. I am not able to forward you any of the husks, for they are now rotted: but I thought that some of your readers and your last correspondent might feel interested in knowing other attempts had also been made to rear mummy wheat.

S.

Meadow Cottage, Ealing.

[We have placed the grains forwarded by our Correspondent in the hands of a skilful horticulturist; and will publish the result.—ED.]

Nacar (Vol. v., p. 536.).—This word is not, I believe, a name appropriated to any one particular shell, but is the term used for the pearl-like substance which, in greater or smaller quantities, forms the lining of many shells. This substance, frequently called mother-of-pearl, exhibits in some species a beautiful play of colours, said to be due to a particular arrangement of the particles. The words *naker* and *nacreous*—with *nacar* Spanish, *nacchera* Italian, and *nacre* French—are given in Webster's *Dictionary*, 2 vols. 4to., London 1832. The beard, or byssus, found in a few genera only, as *Avicula*, *Mytilus*, *Pinna*, and some others, is strong and silky, formed of numerous fibres produced from a gland near the foot of the soft animal, and employed by it to form an attachment to rocks or other objects. In Sicily this is sometimes made into gloves or stockings, more for curiosity than use. A byssus now before me measures six inches in length, is delicately soft and glossy, varying in colour from a rich dark brown to golden yellow, and is

nearly as fine as the production of the silk-worm. *Byssine* is an old name for fine silk.

WM. YARRELL.

Mistletoe (Vol. v., p. 534.).—Mr. Jesse, in his agreeable and instructive *Scenes and Tales of Country Life*, has devoted a chapter of eight pages to the mistletoe, giving a list of more than forty different species of trees and shrubs upon which this parasitic plant has been found, with many localities. In this list the white, gray, black, and Lombardy poplars are included. The mistletoe is there stated to have been found growing on the oak near Godalming, Surrey; at Penporthleuny, parish of Goitre, Monmouthshire; also on one near Usk, and another at St. Dials near Monmouth.

WM. YARRELL.

The Number Seven (Vol. v., p. 532.).—The reply to the Query of MR. EDWARDS is, that *sheva*, "seven," is used indefinitely for *much* or *frequently* in Ruth iv. 15., 1 Sam. ii. 5., Is. iv. 1., Jer. xv. 9., and Ezech. xxxix. 9. 12.; also in Prov. xxiv. 16., where, however, it may refer to seven witnesses or pledges, as in Gen. xxi. 28-30. Compare Herodotus, l. 3. c. 8. on the seven stones of the Arabs, with Homer's *Iliad*, l. 19. v. 243. on the seven tripods of Agamemnon. In Arabic and Hebrew the word *seva* means finished, completed, satiated, as in Ezech. xvi. 28, 29. and Hos. iv. 10. Seven, as an astronomical period, is known to most nations, and has been from times prior to history. Clemens Alex. (*Stromat.* lib. vi. p. 685., Paris, 1629) says the moon's phases are changed every seven days. Seleucus, the mathematician, he also says distinguished seven phases of that luminary. He notices the seven planets, seven angels, seven stars in the Pleiades and in the Great Bear, seven tones in music, seventh days in diseases, and gives an elegant elegy of Solon on the changes of every seven years in man's life. Clemens (lib. v. p. 600., Paris, 1629) has accumulated a variety of passages from ancient poets on the sacredness of the seventh day. Cicero, in the *Somnium Scipionis*, speaks of seven as "numerus rerum fere omnium nodus est." The following have treated on this mystic number: *Fabii Paulini Hebdomades, sive septem de septenario libri*; Omeisius *de Numero septenario*; Philo, *de Mundi opificio*; Macrobius, in *Somnio Scipionis*, l. 50. c. 6.; Gellius, *Noct. Attic.* l. 3. 10.; Censorinus *de die Natali*, c. 7.; and Eusebius, *de Praep. Evang.* l. 13. c. 12. The Hebrews commemorated their

seventh day, a seventh week (Pentecost), the seventh month (commencing their *civil* year), the seventh year (for fallowing the land), and the seven times seventh year, or jubilee.

T. J. BUCKTON.

Bristol Road, Birmingham.

Gabriel Hounds (Vol. v., p. 534.).—The term occurs in Mr. Halliwell's *Dictionary of Archaic and Provincial Words, &c.*, vol. i. p. 388., with the following, explanation:—

"At Wednesbury, in Staffordshire, the colliers going to their pits early in the morning hear the noise of a pack of hounds in the air, to which they give the name of *Gabriel's Hounds*, though the more sober and judicious take them only to be wild geese making this noise in their flight.—Kennett, MS. Lansd. 1033."

The species here alluded to is the Bean Goose *Anser segetum*, of authors. A few of them breed in Scotland and its islands, but by far the larger portion breed still farther north, in Scandinavia. Of the various birds which resort to this country to pass the winter season the Bean Goose is one of the first. I have seen very large flocks in Norfolk early in September, where they feed on the stubbles. I have good authority for their appearance in Gloucestershire, in the vicinity of the Severn, by the last week in August. This is in accordance with the habits of this goose in some parts of the Continent; Sonnerat and M. de Selis Longchamps calling it *L'oiseau des moissons*, or Harvest Goose. They are frequently very noisy when on the wing during the night, and the sound has been compared to that of a pack of hounds in full cry.

WM. YARRELL.

Burial (Vol. v., p. 509.).—To the names already given of those interred in ground not consecrated, may be added that of the eccentric Samuel Johnson, formerly a dancing-master, but through his talent, wit, and gentlemanly manners, became the guest and table companion of the principal families of Cheshire.

He is not mentioned in Chalmers's *Biog. Dict.*, and but very meagrely in that of Rose. The best notice of him is in the *Biographia Dram.*, ed. 1812, as the author of *Hurlothrumbo: or the Supernatural*, and five other dramatic pieces, the first of which took an amazing run, owing to the whimsical madness and extravagance which pervade through the whole piece. Besides these, he is the writer of another strange mystical work, which, as I do not find it anywhere mentioned, I will give the title of, from my copy now before me:

"A Vision of Heaven, which is introduc'd with Essays upon Happiness, a Description of the Court, the Characters of the Quality: Politics, Manners, Satyr, Wit, Humour, Pastoral, Sublimity, Extasy, Love, Fire, Fancy and Taste Universal. Written by Mr. Samuel Johnson. Lond., for E. Withers, &c., where may be had Hurlothrumbo, 1738." 8vo., two neat engravings, and six pages of music.

The compilers of the *Biog. Dram.* state that they had not discovered the date of his death; but we learn from Hanshall's *Hist. of the County Palatine of Chester*: 1817, 4to. p. 515., that he died in 1773, aged eighty-two, and was buried in the plantation forming part of the pleasure-grounds of the Old Hall at Gawsworth, near Macclesfield, in Cheshire. Over his remains is a stone (now there) with an inscription, stating that he was so buried at his own desire.

F. R. A.

Marvell's Life and Works (Vol. v., pp. 439. 513.).—I thought the question proposed by J. G. F. had been answered to the satisfaction of all unprejudiced minds by the remarks on this subject published long ago. (See *Gentleman's Magazine*, vols. xlvi. & xlvii.; *Retrospective Review*, vol. xi., &c.) I say all *unprejudiced* minds; for I confess that, although I am strongly prejudiced in favour of Marvell, yet the internal evidence of the poems in question is so strongly against Marvell, that I am compelled to resign them to their rightful owner. Any careful reader of poetry must acknowledge that every feature in the style is Addison's. Captain Thompson's having found them in MSS. in Marvell's own hand, is no proof of parentage, as in the same MSS. is one which undoubtedly belongs to Mallet, and another which has been proved to be from the pen of Dr. Watts.

My chief reason, however, for intruding on your space is for the purpose of correcting a mistake into which all the biographers of Marvell have fallen, as to the time and place of his birth. It is again and again stated, without any correction, that he was born at Hull, on the 15th November, 1620. That he was not born at Hull I am at length reluctantly compelled to believe; and that the date of his birth is "March 2, 1621," I can prove from authorised documents in my own possession, copied from MS. in his father's handwriting.

With reference to MR. CROSSLEY'S hope that a new edition of his works might soon be published, I may say that a new biography of Marvell, with a selection from his works by a townsman, is already in the press.

JOS. A. KIDD.

Hull.

The Death-Watch (Vol. v., p. 537.).—A good account of this small insect will be found in the second volume of the *Introduction to Entomology* by Messrs. Kirby and Spence. A chapter is devoted to the "Noises produced by Insects."

"In old houses, where these insects abound, they may be heard in warm weather during the whole day. The noise is produced by raising the head, and striking the hard mandibles against wood.

"Thus sings the muse of the witty Dean of St. Patrick on the subject:

—————'a wood worm^[3]
That lies in the old wood, like a hare in her form:
With teeth or with claws it will bite or will scratch,
And chambermaids christen this worm a death-watch:
Because like a watch it always cries click;
Then woe be to those in the house who are sick!
For, sure as a gun, they will give up the ghost,
If the maggot cries click, when it scratches the post;
But a kettle of scalding hot water injected,
Infallibly cures the timber affected:
The omen thus broken, the danger is over,

The maggot will die, and the sick will recover."

The kettle of scalding hot water is also very useful in houses infested with ants or black-beetles.

WM. YARRELL.

Footnote 3:[\(return\)](#)

A small beetle, the *Anobium tessellatum* of Fabricius.

The Query of M. W. B. reminds me of a family bereavement that followed the visit of this insect to my father's homestead. The ticking was heard in a closet, which opened out of the drawing-room. I first discovered it; and was struck with the fact that it occasionally altered the interval which formed the standard of the beats, though with one standard the beats remained punctually uniform. On examination, I found a very tiny insect, in shape like an elongated spider, whose "hind leg" kept beat with the sound; so I suppose that member to have been the instrument by which the ticking was effected. The family bereavement that ensued was the total extinction of the last dying embers of our faith in this world-famed omen; for unhappily, in this instance, no death ensued in our domestic circle.

C. MANSFIELD INGLEBY.

Birmingham.

The Rabbit as a Symbol (Vol. v., p. 487.).—It will be remembered that Richard of the Lion Heart, on his way to the Holy Land, proceeded to Sicily, where he played all manner of rough fantastic tricks, to the infinite disgust of the king and people of the island. On pretence of certain assumed claims, but the rather *pour passer le temps*, our Achilles and his myrmidons fixed a quarrel upon the reigning sovereign, Tancred the Bastard, whose immediate predecessor, William the Good, had married Joanna^[4], Richard's sister; took forcible possession of an important fortress; turned the monks out of a monastery whose situation was convenient for the purposes of his commissariat; and at last, by an act of most unjustifiable aggression, laid siege to the city and castle of Messina, on whose walls was soon triumphantly planted the royal banner of the Plantagenets. Now the hare and rabbit frequently occur upon the coins of Spain and Sicily, of which countries they were, indeed, the particular and well-recognised symbols.

(Fosb. *Ency. Antiq.*, pp. 722. 728.); and I would suggest that the device in question has reference to Richard's proceedings in the latter kingdom, which, in an age whose acknowledged principle was that "Might makes Right," would be looked upon as redounding vastly to his credit and renown, and most worthy, therefore, of commemoration amongst the other emblematic representations which give so remarkable a character to the monumental effigies at Rouen. Regarding it in this point of view, there appears to be much inventive significance in this device, and the exercise of a little ingenuity would soon, I think, render manifest the peculiar applicability of its "singular details" to the circumstances of Richard's transactions with Tancred, as they are presented to us by our own chroniclers.

The appearance of this symbol or device of a rabbit, upon old examples of playing cards, as referred to by SYMBOL, is easily accounted for. These "devil's books" came to us originally from Spain; and in ancient cards of that country, columbines were Spades, *rabbits*^[5] Clubs, pinks Diamonds, and roses Hearts.—Fosb. *ut sup.*, p. 602.

COWGILL.

Footnote 4:[\(return\)](#)

This lady afterwards married Raymond, Count de St. Gilles, son of the Count of Toulouse. Eleanora, another of Richard's sisters, married Alphonso, third king of Castile.

Footnote 5:[\(return\)](#)

The Clubs, in Spanish cards, are not, as with us, trefoils, but cudgels, i. e. *bastos*: the Spades are swords, i. e. *espadas*.—Fosb. *ut sup.*; see the plate of "Sports, Amusements," &c.

Spanish Vessels wrecked on the Irish Coast (Vol. v., p. 491.).—A fair account of this eventful visitation may be expected from the *Annals of the Four Masters*, a work compiled within forty years of the occurrence, and not near so many miles removed from the waters over which most of its fatalities were felt:

"A large fleet (says this work) consisting of eight sure ships, came on the sea from the King of Spain this year (1588), and some say it was their intention to take harbour and land on the coasts of England should they obtain an opportunity; but in that they did not succeed, for the Queen's fleet encountered them at sea, and took four of their ships, and the rest of the fleet was scattered and dispersed along the coasts of the neighbouring countries, viz., on the eastern side of England, on the north-eastern shores of Scotland, and on the north-western coast of Ireland. A great number of the Spaniards were drowned in those quarters, their ships having been completely wrecked; and the smaller proportion of them returned to Spain, and some assert that 9,000 of them were lost on that occasion."

This narrative is utterly innocent of the wholesale, or of any *execution* of the unfortunate invaders; and, in truth, our Lord Deputies have too much to answer for, without throwing the barbarism of such a massacre upon one of them. Some colouring is, however, given to the charge by the writings of Smith, *History of Kerry*; Cox, *Hibernia Anglicana*; and even Leland, *History of Ireland*, vol. ii. p. 322. The deviation of these Spaniards northwards can be, I think, accounted for by the discomfitures they sustained from the English and Dutch fleets, who so kept the seas east and south of England, as to make a circuit round the Orkney Islands, with a descent to the westward of Ireland, the most advisable, though as it proved, not the less dangerous line of return.

JOHN D'ALTON.

48. Summer Hill, Dublin.

Second Exhumation of King Arthur's Remains (Vol. v., p. 490.).—The details of the circumstances attending the first (I am not aware of any second) exhumation of these remains at Glastonbury in 1189, have been transmitted to us by Giraldus Cambrensis, who saw both the bones and the inscription, by the Monk of Glastonbury, and, briefly, by William of Malmesbury, all cotemporaries with the event. Sharon Turner, in his *History of the Anglo-Saxons*, 8vo. edit., 1823, vol. i. pp. 279-282., gives a full account, from these and other authorities, of this remarkable discovery.

COWGILL.

Etymology of Mushroom (Vol. iii., p. 166.).—DR. RIMBAULT states that the earliest example with which he is acquainted of this word, being spelt *mushrump*, occurs in the following passage in Robert Southwell's *Spirituall Poems*, 1595:

"He that high growth on cedars did bestow,
Gave also lowly *mushrumps* leave to growe."

I suppose that this word has been derived from *Maesrhin*, one of the names of the mushroom in Welsh. As the meanings of the word *rhin* are "a channel," "a virtue," "a secret," "a charm," none of which are applicable to a mushroom, I conjecture that it is a corruption of the word *rhum* (also spelt *rhump*), but I am unable to mention an instance of the word being spelt by any Welsh writer of ancient times. The etymology which I suggest is *maesrhum*; from *maes*, "a field," and *rhum*, "a thing which bulges out." This meaning very nearly resembles that of the French name of one kind of mushroom, *champignon*.

S. S. S. (2.)

The Grave of Cromwell (Vol. v., p. 477.).—MR. OLIVER PEMBERTON has referred your correspondent A. B. to Lockinge's *Naseby* for an account of the Protector's funeral and probable burial on the field of Naseby. As the volume may not be very generally known, would A. B. like a summary of Mr. Lockinge's ten 12mo. pages? or could you, Mr. Editor, spare room for

the whole? Mastin, in his *History of Naseby*, alludes to the doubts that have been expressed "relative to the funeral-place of the Protector Cromwell", and quotes a passage from Banks's *Life of Cromwell*, but gives no opinion thereon.

ESTE.

Edmund Bohun (Vol. v., p. 539.).—Of Edmund Bohun's *Historical Collections*, in eight vols. folio, I became the purchaser at Mr. Bright's sale. They consist of a most curious and interesting collection of the newspapers, ballads, tracts, broadsides of the period (1675-92) in regular series, bound up with original MS. documents, and with a manuscript correspondence with Bohun from Hickes, Roger, Coke, Charlotte, and others, relating to the politics and news of the day. If your correspondent MR. RIX, from whom I am glad to find we are to expect the private Diary of Bohun, wishes for a more particular description of the volumes, I shall be happy to furnish it.

JAS. CROSSLEY.

Sneezing (Vol. v., pp. 369. 500.).—D'Israeli, in the first series of the *Curiosities*, in a paper on the custom of saluting persons after sneezing, says:

"A memoir of the French Academy notices the practice in the New World, on the first discovery of America."

A relation of mine tells me, that when young, he once fell down in a fit after a violent sneeze; the "Cryst helpe" may therefore not be totally superfluous!

A. A. D.

Braem's Memoires (Vol. v., pp. 126. 543.).—Permit me to inform MR. J. F. L. COENEN that the MS. volume containing Braem's *Memoires Touchant le Commerce, &c.*, is at Oxford, in the library of Sir Robert Taylor's Institution, where it may be seen and consulted, but cannot be disposed of. MR. COENEN is thanked for his obliging information.

J. M.

Portrait of Mesmer (Vol. v., p. 418.).—I beg to inform SIGMA there is a very good engraved profile (bust) of Mesmer in a German work by him, entitled

Mesmerismus, oder System der Wechselwirkungen, &c., published at Berlin in 1814, in 1 vol. 8vo., a copy of which is now before me.

J. M.

BOOKS AND ODD VOLUMES

WANTED TO PURCHASE.

SCOTT'S LADY OF THE LAKE.

—— LAY OF THE LAST MINSTREL.

—— MARMION.

The original 4to. editions in boards.

FLANAGAN ON THE ROUND TOWERS OF IRELAND. 4to. 1843.

A NARRATIVE OF THE PROCEEDINGS IN THE DOUGLAS CAUSE. London, Griffin, 8vo. 1767.

CLARE'S POEMS. Fcap. 8vo. Last edition.

MALLET'S ELVIRA.

MAGNA CHARTA; a Sermon at the Funeral of Lady Farewell, by George Newton. London, 1661.

BOOTHBY'S SORROWS SACRED TO THE MEMORY OF PENELOPE. Cadell and Davies. 1796.

CHAUCEER'S POEMS. Vol. I. Aldine Edition.

BIBLIA SACRA, Vulg. Edit. cum Commentar. Menochii. Alost and Ghent, 1826. Vol. I.

BARANTE, DUCS DE BOURGOGNE. Vols. I. and II. 1st, 2nd, or 3rd Edit. Paris. Ladvocat, 1825.

BIOGRAPHIA AMERICANA, by a Gentleman of Philadelphia.

POTGIESERI DE CONDITIONE SERVORUM APUD GERMANOS. 8vo. Col. Agrip.

THE COMEDIES OF SHADWELL may be had on application to the Publisher of "N. & Q."

* * Letters, stating particulars and lowest price, *carriage free*, to be sent to MR. BELL, Publisher of "NOTES AND QUERIES," 186. Fleet Street.

Notices to Correspondents.

MARIA S. will find Ben. Jonson's "Verses on the Marriage of the Earl of Somerset" in No. 122., p. 193. of the present Volume.

W. M. H. *The song quoted by Mr. Bernal Osborne, which begins,*

"Who fears to speak of ninety-eight,"

is reprinted in a volume of poetry extracted from the Nation newspaper, and printed in Dublin under the title of "The Spirit of the Nation."

EIRIONACH's *Note on the Fern* will be welcome.

CUTHBERT BEDE. *How can we forward a letter to this Correspondent?*

W. M. H. *The author of the work on the Apocalypse, to which our Correspondent refers, has no present intention of completing it, for reasons which our Correspondent would, we are sure, respect.*

We are this week compelled by want of space to omit many articles of great interest—among which we may mention some Shakspearian Illustrations by Mr. Singer and A. E. B.; Mr. Sternberg's Popular Stories of the English Peasantry; Rev. R. Hooper's Account of a Copy of Æschylus, &c.; and for the same reason have omitted our usual NOTES ON BOOKS and LIST OF REPLIES RECEIVED.

Full price will be given for clean copies of No. 19. upon application to our Publisher.

"NOTES AND QUERIES" is published at noon on Friday, so that the Country Booksellers may receive Copies in that night's parcels, and deliver them to their Subscribers on the Saturday.

MOURNING.—COURT, FAMILY, and COMPLIMENTARY.—The Proprietor of THE LONDON GENERAL MOURNING WAREHOUSE begs respectfully to remind families whose bereavements compel them to adopt Mourning Attire, that every article of the very best description, requisite for a complete outfit of Mourning, may be had at this Establishment at a moment's notice.

ESTIMATES FOR SERVANTS' MOURNING, affording a great saving to families, are furnished: whilst the habitual attendance of experienced assistants (including dressmakers and milliners), enables them to suggest or supply every necessary for the occasion, and suited to any grade or condition of the community. WIDOWS' AND FAMILY MOURNING is always kept made up, and a note, descriptive of the Mourning required, will insure its being sent forthwith, either in Town or into the Country, and on the most Reasonable Terms.

W. C. JAY, 247-249. Regent Street.

Now ready, Two New Volumes (price 28s. cloth) of
THE JUDGES OF ENGLAND and the Courts at Westminster. By
EDWARD FOSS, F.S.A.

Volume Three, 1272-1377.
Volume Four, 1377-1485.

Lately published, price 28s. cloth,

Volume One, 1066-1199.
Volume Two, 1199-1272.

"A book which is essentially sound and truthful, and must therefore take its stand in the permanent literature of our country."—*Gent. Mag.*

London: LONGMAN & CO.

CIGARS OF THE CHOICEST IMPORTATIONS at GREATLY REDUCED PRICES for CASH. The First Class Brands. "Ptarga," "Flor Cabana," &c., 28s. per pound. British Cigars from 8s. 6d. per pound. Lord Byron's, 14s. 6d., very fine flavour. Genuine Latakia, 10s. 6d. per pound, delicious aroma. Every Description of Eastern and American Tobaccos. Meerschaum Pipes, Cigar Cases, Stems, Porte Monnaies, &c. &c. of the finest qualities, considerably under the Trade Prices.

J. F. VARLEY & CO., Importers.

The HAVANNAH STORES, 364. Oxford Street, opposite the Princess's Theatre.

Now ready,

POPULAR SCRIPTURE ZOOLOGY; containing a Familiar History of the Animals mentioned in the Bible. By MARIA E. CATLOW. With Coloured Plates, price 10s. 6d.

REEVE & CO., 5. Henrietta Street, Covent Garden.

CURIOUS and RARE BOOKS.—A Second-hand Catalogue of "Erotica, Facetiæ, Satyræ, Curiosa, sexuelle varia" in various languages, has just been published in Germany, which may be had gratis on application, or by Post, for Two Stamps, through Mr. FRANZ THIMM, German Bookseller, 88. New Bond Street, London.

THE CHEAPEST BOOKS, New and Second-hand, are to be purchased at SOTHERAN & CO.'s, 331. Strand, opposite Somerset-house; or at their City Establishment, 10. Little Tower Street, Eastcheap, near the Monument. The best editions of the standard authors, in History, Biography, Divinity, and general Literature, also kept in superior bindings, executed by the best London binders, in many cases at less than the published prices in boards.

S. and Co.'s Series of Catalogues forwarded to book buyers in all parts of the world for twelve months on the receipt of 12 Postage Stamps.

WESTERN LIFE ASSURANCE AND ANNUITY SOCIETY,

3. PARLIAMENT STREET, LONDON.

Founded A.D. 1842.

Directors.

H. Edgeworth Bicknell, Esq.
William Cabell, Esq.
T. Somers Cocks, Jun. Esq. M.P.
G. Henry Drew, Esq.
William Evans, Esq.
William Freeman, Esq.
F. Fuller, Esq.
J. Henry Goodhart, Esq.
T. Grissell, Esq.
James Hunt, Esq.
J. Arscott Lethbridge, Esq.
E. Lucas, Esq.
James Lys Seager, Esq.
J. Basley White, Esq.
Joseph Carter Wood, Esq.

Trustees.

W. Whateley, Esq., Q.C.;
L. C. Humfrey, Esq., Q.C.;
George Drew, Esq.

Consulting Counsel.—Sir Wm. P. Wood, M.P.

Physician.—William Rich. Basham, M.D.

Bankers.—Messrs. Cocks, Biddulph, and Co., Charing Cross.

VALUABLE PRIVILEGE.

POLICIES effected in this Office do not become void through temporary difficulty in paying a Premium, as permission is given upon application to suspend the payment at interest, according to the conditions detailed on the Prospectus.

Specimens of Rates of Premium for Assuring 100*l.*, with a Share in three-fourths of the Profits:—

Age	£	s.	d.	Age	£	s.	d.
17	1	14	4	32	2	10	8
22	1	18	8	37	2	18	6
27	2	4	5	42	3	8	2

ARTHUR SCRATCHLEY, M.A., F.R.A.S., Actuary.

Now ready, price 10*s.* 6*d.*, Second Edition, with material additions, INDUSTRIAL INVESTMENT and EMIGRATION: being a TREATISE on BENEFIT BUILDING SOCIETIES, and on the General Principles of Land Investment, exemplified in the Cases of Freehold Land Societies, Building Companies, &c. With a Mathematical Appendix on Compound Interest and Life Assurance. By ARTHUR SCRATCHLEY, M.A., Actuary to the Western Life Assurance Society, 3. Parliament Street, London.

NIEBUHR'S NEW WORK.

This day, 3 vols. 8vo., cloth, 1*l.* 11*s.* 6*d.*,

NIEBUHR'S ANCIENT HISTORY; comprising Lectures on the History of the Asiatic Nations, the Egyptians, Greeks, Carthaginians, and Macedonians. Translated from the German by Dr. L. SCHMITZ. With Additions from MSS. in the exclusive possession of the Editor.

By the same Editor,

NIEBUHR'S LECTURES on ROMAN HISTORY. 3 vols. 8vo., 1*l.* 4*s.*

London: TAYLOR, WALTON, and MABERLY, 28. Upper Gower Street,
and 27. Ivy Lane.

Now ready, 1 vol. crown 8vo., with Plates and Map of the District, 3s. 6d.

RICHMONDSHIRE, its Ancient Lords and Edifices; a Concise Guide to
the Localities of Interest to the Tourist and Antiquary; with Short Notices of
Memorable Men. By W. HYLTON LONGSTAFFE, Author of the "History
of Darlington," &c.

London: GEORGE BELL, 186. Fleet Street; Richmond: JOHN BELL.

PROVIDENT LIFE OFFICE,

50. REGENT STREET.

CITY BRANCH: 2. ROYAL EXCHANGE BUILDINGS.
Established 1806.

Policy Holders' Capital, 1,192,818*l*.

Annual Income, 150,000*l*.—Bonuses Declared, 743,000*l*.
Claims paid since the Establishment of the Office, 2,001,450*l*.

President.

The Right Honourable EARL GREY.

Directors.

The Rev. James Sherman, *Chairman.*

H. Blencowe Churchill, Esq., *Deputy-Chairman.*

Henry B. Alexander, Esq.

George Dacre, Esq.

William Judd, Esq.

Sir Richard D. King, Bart.

The Hon. Arthur Kinnaird

Thomas Maugham, Esq.
 William Ostler, Esq.
 Apsley Pellatt, Esq.
 George Round, Esq.
 Frederick Squire, Esq.
 William Henry Stone, Esq.
 Capt. William John Williams.

J. A. Beaumont, Esq. *Managing Director.*

Physician—John Maclean, M.D. F.S.S., 29. Upper Montague Street,
 Montague Square.

NINETEEN-TWENTIETHS OF THE PROFITS ARE DIVIDED AMONG
 THE INSURED.

Examples of the Extinction of premiums by the Surrender of Bonuses.

Date of Policy.	Sum Insured.	Original Premium.	Bonuses added subsequently, to be further increased annually.
1806	£2500	£79 10 10 Exting.	£1222 2 8
1811	1000	33 19 2 Ditto	231 17 8
1818	1000	34 16 10 Ditto	114 18 10

Examples of Bonuses added to other Policies.

Policy No.	Date.	Sum Insured.	Bonuses added.	Total with Additions, to be further increased.
521	1807	£900	£982 12 1	£1882 12 1
1174	1810	1200	1160 5 6	2360 5 6
3392	1820	5000	3558 17 8	8558 17 8

Prospectuses and full particulars may be obtained upon application to the Agents of the Office, in all the principal towns of the United Kingdom, at the City Branch, and at the Head Office, No. 50. Regent Street.

THE QUARTERLY REVIEW, No. CLXXXI. ADVERTISEMENTS for the forthcoming Number must be forwarded to the Publisher by the 24th, and Bills for insertion by the 26th instant.

JOHN MURRAY, Albemarle Street.

THE TRAVELLER'S LIBRARY.

On Wednesday, June 30, will be published, in 16mo. price 1s.

BRITTANY and the BIBLE: With Remarks on the French People and their Affairs. By I. HOPE.

Also, on the same day, in 16mo., price 1s.,

THE NATURAL HISTORY of CREATION. By T. LINDLEY KEMP, M.D., Author of "Agricultural Physiology," &c.

* * * The above works will form the 23d and 24th Parts of THE TRAVELLER'S LIBRARY.

Just published in this Series,

Mrs. JAMESON'S SKETCHES in CANADA and RAMBLES among the RED MEN, Price 2s. 6*d.*; or in Two Parts, 1s. each.

London: LONGMAN, BROWN, GREEN, & LONGMANS.

Just published, in 8vo., price 1s. 6*d.*

RULES for the COMPOSITION of LATIN INSCRIPTIONS. Arranged by
RICHARD WALKER, B.D., Fellow of Magdalene College, Oxford.

WHITTAKER & CO., London.

PHOTOGRAPHY.—J. B. HOCKIN & CO., OPERATIVE CHEMISTS,
289. STRAND, manufacture all the PURE chemicals used in this art; also
Apparatus for the Glass, Paper, and Daguerreotype Processes. Achromatic
Lens and Camera from 35s. Instruction in the art.

Agents for "Archer's Iodized Collodion and Improved Camera," which
obviates the necessity for a dark room.

Electrotyping in all its branches.

Chemical Cabinets for experimental and analytical purposes. Apparatus for
gold assaying, and instruction therein.

Now ready, Part IV., price 2s. 6*d.*, of the Rev. JOSEPH HUNTER'S
CRITICAL AND HISTORICAL TRACTS.

THE GREAT HERO of the ANCIENT MINSTRELSY of ENGLAND,
"ROBIN HOOD," his Period, real Character, &c., investigated, and perhaps
ascertained.

Contents of Part I. Agincourt. II. First Colonists of New England. III. John
Milton. 2s. 6*d.* each.

J. RUSSELL SMITH, 36. Soho Square.

12mo., price 5s. cloth.

THE DIALECT AND FOLKLORE of NORTHAMPTONSHIRE. By T.
STERNBERG.

CONTENTS:—Dissertation on the Dialects of Northamptonshire—Glossary of the Provincialisms, showing their Derivation from the Anglo-Saxon and Danish, and pointing out Affinities in the other English and Germanic Dialects—The Fairy Creed and its Legends—Witchcraft, Charms; Superstitions relating to Animals, Plants, Wells, and Fountains—Popular Legends of the Devil; Christmas and Easter Customs; Local Proverbs, &c. &c.

"The Fairy Stories are told with an arch humour which charms the reader exceedingly."—*Athenæum*.

"The first work that has appeared on the subject, and Mr. Sternberg has evinced in it a striking and peculiar aptitude for this branch of inquiry."—*Northampton Mercury*.

J. RUSSELL SMITH, 36. Soho Square.

Printed by THOMAS CLARK SHAW, of No. 8. New Street Square, at No. 5. New Street Square, in the Parish of St. Bride, in the City of London; and published by GEORGE BELL, of No. 186. Fleet Street, in the Parish of St. Dunstan in the West, in the City of London, Publisher, at No. 186. Fleet Street aforesaid.—Saturday, June 19. 1852.

*** END OF THE PROJECT GUTENBERG EBOOK NOTES AND
QUERIES, NUMBER 138, JUNE 19, 1852 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.